

BHARAT HEAVY ELECTRICALS LIMITED
(A Government of India Undertaking)
PURCHASE DEPT., PROJECT ENGINEERING & SYSTEMS DIVISION
BHEL, RAMACHANDRAPURAM, HYDERABAD
NOTICE INVITING TENDER



Ref: **T7D1Z71115**

Date: **01-08-2026**

Offers are invited from reputed & experienced bidders with sound technical and financial capabilities (meeting PRE-QUALIFICATION CRITERIA as mentioned in NIT for the subject job) by the undersigned on the behalf of BHARAT HEAVY ELECTRICALS LIMITED as per the tender document. Issue of tender to any bidder shall not construe that the bidder is considered to be qualified. Consideration of their offer is subject to meeting PRE-QUALIFICATION CRITERIA as mentioned in NIT & approval by end customer/consultant/BHEL. Following points relevant to the tender may please be noted and complied with:

SALIENT DETAILS OF NIT		
SL. NO.	ISSUE	DESCRIPTION
1.0	SUBJECT	The scope of bidder shall include Supply of Earthing Materials Package for Hindalco-Lapanga (Unit#7,8 &9) Projects.
2.0	ENQUIRY NO.	T7D1Z71115
3.0	DETAILS OF TENDER DOCUMENT	
3.1	Technical Specifications	As per attached Technical documents.
3.2	Price schedule Format	Quoted prices should be as per Price bid format of specification. <i>Evaluation shall be done based on Overall L1.</i>
4.0	TENDER START (ZERO) DATE	As per GEM BID document
5.0	DELIVERY PERIOD	Unit#7,8 & 9: 120 Days from the date of issue of GeM PO up to material receipt at project site.
6.0	OFFER SUBMISSION PROCEDURE	As per GEM portal
7.0	BID END DATE	As per GEM BID document
8.0	EMD AMOUNT	Not Applicable
9.0	COST OF TENDER	Not Applicable
10.0	SCHEDULE OF PRE-BID DISCUSSION (PBD)	Not Applicable
11.0	SEEKING CLARIFICATION	Though email. cmahesh.in , bnreddy@bhel.in , vara@bhel.in , sureshp@bhel.in
12.0	INTEGRITY PACT	Not Applicable
13.0	PERFORMANCE SECURITY BOND	Not Applicable
14.0	DETAILS OF INDEPENDENT EXTERNAL MONITOR (IEM)	Not Applicable
15.0	LATEST UPDATES	Shall be communicated to the bidders in GEM portal in corresponding bid.

For: - **STRUCTURE INDIA**



NOTES FOR BIDDERS:

- 1.0 Your offer & documents submitted along with offer shall be signed & stamped in each page by your authorized representative. No overwriting/ correction in tender documents by bidders shall be allowed. However, if correction is unavoidable, the same may be signed by authorized signatory.
- 2.0 All documents/ annexures submitted with the offer shall be properly annexed and placed in respective places of the offer as per enclosure list mentioned in the covering letter. BHEL shall not be responsible for any missing documents.

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- 3.0 No Deviation with respect to tender clauses and no additional clauses/ suggestions/ clarification in Techno-commercial bid/ Price bid shall normally be considered by BHEL. Bidders are requested to positively comply with the same. Offers with deviation are liable for rejection.
- 4.0 BHEL reserve the right to accept or reject any or all offer(s) without assigning any reasons thereof. BHEL also reserve the right to cancel the tender wholly or partly without assigning any reason thereof. Also, BHEL shall not entertain any correspondence from bidders in this matter (except for the refund of EMD, if applicable).
- 5.0 Bidders may consult this office before submitting their offers, for any clarifications regarding scope of work, facilities available at sites or on terms and conditions. No additional claim shall be entertained by BHEL in future, on account of non-acquaintance of above.
- 6.0 In the event of any conflict between requirement of any clause of this specification/ documents/ drawings/ data sheets etc. or requirements of different codes/ standards specified, the same to be brought to the knowledge of BHEL in writing for clarification before due date of seeking clarification (as applicable), otherwise, more stringent requirement as may be interpreted by BHEL shall prevail and shall be binding on the bidder. Any typing error/ missing pages/ other clerical errors in the tender documents, noticed by the bidders must be pointed out before pre-bid meeting/ submission of offer, or else, BHEL's interpretation shall prevail & shall be binding on the bidder.
- 7.0 Unless specifically mentioned otherwise, bidder's quoted price shall be deemed to be in compliance with tender along with TCNs including PBD, if any.
- 8.0 The Price Bids of only those bidders will be opened who will be qualified for the subject job on the basis of evaluation on pre-qualification criteria/ techno-commercial bids, approval/ acceptance of customer (as applicable), etc. BHEL's decision in this regard shall be final & binding. BHEL also reserve the right to reject bidder with unsatisfactory past performance in execution of a contract. BHEL's decision in this regard shall be final & binding.
- 9.0 **REVERSE AUCTION: APPLICABLE**
- 10.0 Corrigendum / extension / addendum, if any, pertaining to this tender will be published in the GEM web site www.bhel.com or <https://eprocurebhel.co.in/> or will be issued directly to you, as applicable.
- 11.0 Bidders shall submit Integrity Pact Agreement (Duly signed by authorized signatory who signs in the offer), if applicable, along with techno-commercial bid. This pact shall be considered as a preliminary qualification for further participation. Detail of Independent External Monitor (IEM) for the subject tender, if applicable, is furnished above.
- 12.0 Micro and Small Enterprises (MSE): The Supplier needs to submit/update MSE/MII credentials on Gem portal.
If seller fails to claim MSE/MII provision on Gem portal at profile updation/bid submission stage, the said seller will become ineligible for getting the MSE/MII benefits for that bid automatically.

For: - **STRUCTURE INDIA**



for BHARAT HEAVY ELECTRICALS LTD

MAHESH CHITHALURI
Manager/Purchase(T&IP)
HPEP, Hyderabad.

ANNEXURE-2: PRICE BID FORMAT

1 x 150MW BTG HINDALCO-LAPANGA, Unit#7
2 x 150MW BTG HINDALCO-LAPANGA, Unit#8 & 9

EARTHING & LIGHTNING PROTECTION MATERIALS

Sl. No.	Material Code	Description	Qty.	Unit of Meas.	Unit Price	Total Price	HSN/SAC	Remarks
1	PY9755001018	75 x 10 GI Strip	10,800	M				
2	PY9755001026	50 x 6 GI Strip	12,000	M				
3	PY9755001034	35x6 GI STRIP	4,100	M				
4	PY9755001093	25 x 3 GI Strip	6,000	M				
5	PY9755001069	8 SWG GI WIRE (SOLID)	20,000	M				
6	PY9755002049	65MM DIA,3M LONG GI PIPE ELECTROD HEAVYDUTY CLASS-C	50	Nos.				
7	PY9755002065	COPPER PIPE ELECTRODE AS FIG.6 OF PY55002.CLASS-C	32	Nos.				
8	PY9755003010	VER TER AIR TERM ROD(G.I) FOR LIGHTNING PROTECTION	20	Nos.				
Total Package Price								

NOTES:

- Bidders should mention the applicable HSN/SAC code along with GST% against respective line items.
- Bidders shall not fill/ edit/ modify anything else in the Price Bid Format.
- The Total Bid Value quoted by the Bidder shall represent the total landed cost for this enquiry and shall include GST,Packing & Forwarding Charges, Freight Charges etc.,.Transit Insurance & TPI inspection charges are in BHEL scope.**
- The bidders will provide un-priced price format strictly in the BHEL price format given above, in the techno commercial part of their offers. Bid will be rejected if any other price format is used. Both priced and un-priced price formats to be provided by the bidders shall be signed and stamped copies.

Bidder to indicate the "Quoted" in the columns "Unit rate & Total rate" as a confirmation of their bid to the respective item and upload un-priced bid in part-1 of the offer (techno-commercial part).

(Name & Signature of the Bidder)
(Company Stamp)



TECHNICAL PQC CRITERIA

PROJECT: 3x150 MW BTG Units-7,8&9 HINDALCO, LAPANGA

ITEM: Earthing Materials

Sl. No.	Description of Criterion	Supporting documents to be submitted by bidder
1.	Bidder should have manufactured and supplied minimum 3000 metres, minimum size of GI Strip of 50x6 (or) 25x6 in one or more than one order within last 7 years from the date of technical bid opening of this tender.	Copies of Purchase Orders, Proof of supply (viz. MDCC/ Inspection certificate/ Invoice/ LR/Completion Certificate/Performance Certificate) of respective POs shall be submitted.

For: - STRUCTURE INDIA

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Additional Terms and Conditions for Purchase Orders through GEM

Buyer Added Bid Specific Additional Terms & Conditions (ATC)

Enquiry No: T7D1Z71115

1. **PRE-QUALIFICATION CRITERIA:**

1.1 TECHNICAL: **Applicable.** Refer Attached Technical PQC Document attached along with this bid documents.

1.2 FINANCIAL: **The minimum average annual financial turnover of the supplier during the last 3 financial years should not be less than Rs. 33 Lakhs. Vendors shall enclose the last three financial years balance sheets and Profit & loss statements duly audited and certified by Chartered Accountant.**

1.3 Submission of Integrity Pact duly signed: Not Applicable

1.4 Bidder must not be admitted under Corporate Insolvency Resolution Process or Liquidation as on date, by NCLT or any adjudicating authority/authorities and shall submit undertaking (Annexure-4) to this effect.

1.5 Customer Approval:

Bidders, apart from the Customer approved list, may also participate in this enquiry. However, their offers shall be considered for Price Bid Opening subject to the bidders satisfying the following:

- i. Pre-Qualification Criteria (PQC)
- ii. Techno-Commercial terms of the enquiry
- iii. Approval* of End-Customer / Customer's PMC (of bidder's brand/ make).

**Bidders should submit properly indexed documents regarding their credentials along with the offer to enable BHEL to take up their approval from end Customer.

Explanatory Notes for the PQR:

- i. 'Supplied' in PQR – 1.1 means, bidder should have delivered the Materials & Quantity as mentioned. Bidder shall submit the relevant documents against the above PQRs inclusive of Purchase order (wherein PO no., date, etc. is legible) along with proof of supply (i.e. - Completion Certificate/ Copy of Invoices / LR Copies/ Store Receipt Vouchers/ Payment Advice etc.) in the respective attachments in their offer in support of PQR. The "Contract" referred in Technical PQR may be Rate Contract/ Framework Agreement/ Purchase Order/ Work Order.
- ii. Bidder to submit Audited Balance Sheet and Profit and Loss Account for the respective years as indicated against Financial Turnover PQR – 1.2 above along with all annexures.

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- iii. In case of audited Financial Statements have not been submitted for all the three years as indicated against Financial Turnover PQR above, then the applicable audited statements submitted by the bidders against the requisite three years, will be averaged for three years i.e. total divided by three.
- iv. If Financial Statements are not required to be audited statutorily, then instead of audited Financial Statements, Financial Statements are required to be certified by Chartered Accountant.
- v. Credentials furnished by the bidder against "PRE-QUALIFYING CRITERIA" shall be verified from the issuing authority for its authenticity. In case, any credential (s) is/are found to be spurious, offer of the bidder is liable to be rejected. BHEL reserves the right.
- vi. Price Bids of only those bidders shall be opened who stand qualified after compliance of QR – 1.1 to 1.5

2. **SCOPE OF SUPPLY:**

Supply of **Earthing Materials Package** (as per specification) to project site on F.O.R. Destination Basis.

Site Details:

BHEL Site Office, Hindalco Industries Limited, Aditya Expansion Project - Smelter,
Aditya Aluminium, Lapanga,
Sambalpur -768212, Odisha.

Bidder shall quote Unit Price against BHEL enquiry in GeM portal and quotation shall include basic supply price, packing forwarding, testing, Freight up to project site, GST.

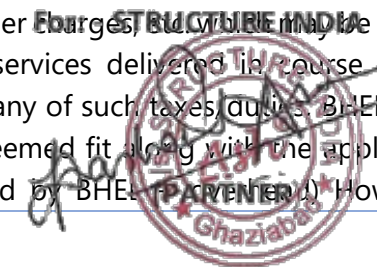
Please note that transit insurance, third-party inspection (TPI) and Unloading of materials at Destination/ Site shall be in BHEL's scope.

3. **PRICE BASIS / EVALUATION:**

Offers shall be evaluated on an overall basis to arrive at the L1 bidder.

4. **TAXES & DUTIES:**

4.1 The Supplier/Vendor shall pay all (save the specific exclusions as enumerated in this clause) taxes, fees, license, charges, deposits, duties, tools, royalty, commissions, other charges, duties and taxes levied on the input goods & services consumed and output goods & services delivered in course of his operations in executing the contract. In case BHEL is forced to pay any of such taxes/duties BHEL shall have the right to recover the same from his bills or otherwise as deemed fit along with the applicable overheads @5% and interest on the total value (i. e. amount paid by BHEL to Government). However,



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provisions regarding **GST** on output supply (goods/service) and TDS/TCS as per Income Tax Act shall be as per following clauses.

4.2 GST (Goods and Services Tax)

4.2.1 GST as applicable on output supply (goods/services) are included from Supplier/Vendor's scope; therefore, contractor's price/rates shall be **inclusive** of GST. Reimbursement of GST is subject to compliance of following terms and conditions. BHEL shall have the right to deny payment of GST and to recover any loss to BHEL on account of tax, interest, penalty etc. for non-compliance of any of the following condition.

4.2.2 The admissibility of GST, taxes and duties referred in this chapter or elsewhere in the contract shall be limited to direct transactions between BHEL & its Supplier/Vendor. BHEL shall not consider GST on any transaction other than the direct transaction between BHEL & its Supplier/Vendor.

4.2.3 Supplier/Vendor shall obtain prior written consent of BHEL before billing the amount towards such taxes. Where the GST laws permit more than one option or methodology for discharging the liability of tax/levy/duty, BHEL shall have the right to adopt the appropriate one considering the amount of tax liability on BHEL/Client as well as procedural simplicity with regard to assessment of the liability. The option chosen by BHEL shall be binding on the Contractor for discharging the obligation of BHEL in respect of the tax liability to the Supplier/Vendor.

4.2.4 Supplier/Vendor has to submit GST registration certificate of the concerned state. Supplier/Vendor also needs to ensure that the submitted GST registration certificate should be in active status during the entire contract period.

4.2.5 Supplier/Vendor has to issue Invoice/Debit Note/Credit Note indicating HSN/SAC code, Description, Value, Rate, applicable tax and other particulars in compliance with the provisions of relevant GST Act and Rules made thereunder.

4.2.6 Supplier/Vendor has to submit GST compliant invoice within the due date of invoice as per GST Law. In case of delay, BHEL reserves the right of denial of GST payment if there occurs any hardship to BHEL in claiming the input thereof. In case of goods, Supplier/Vendor has to provide scan copy of invoice & GR/LR/RR to BHEL before movement of goods starts to enable BHEL to meet its GST related compliances. Special care should be taken in case of month end transactions.

4.2.7 Supplier/Vendor has to ensure that invoice in respect of such services which have been provided/completed on or before end of the month should not bear the date later than last working day of the month in which services are performed.

4.2.8 Subject to other provisions of the contract, GST amount claimed in the invoice shall be released on fulfilment of all the following conditions by the Supplier/Vendor: -

- a) Supply of goods and/or services have been received by BHEL.

For: - **STRUCTURE INDIA**

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- b) Original Tax Invoice has been submitted to BHEL.
- c) Supplier/Vendor has submitted all the documents required for processing of bill as per contract/ purchase order/ work order.
- d) In cases where e-invoicing provision is applicable, Supplier/Vendor is required to submit invoice in compliance with e-invoicing provisions of GST Act and Rules made thereunder.
- e) Supplier/Vendor has filed all the relevant GST return (e.g. GSTR-1, GSTR-3B, etc.) pertaining to the invoice submitted and submit the proof of such return along with immediate subsequent invoice. In case of final invoice/ bill, contractor has to submit proof of such return within fifteen days from the due date of relevant return.
- f) Respective invoice has appeared in BHEL's GSTR - 2A for the month corresponding to the month of invoice and in GSTR-2B of the month in which such invoices has been reported by the contractor along with status of ITC availability as "YES" in GSTR-2B. Alternatively, BG of appropriate value may be furnished which shall be valid at least one month beyond the due date of confirmation of relevant payment of GST on GSTN portal or sufficient security is available to adjust the financial impact in case of any default by the Supplier/Vendor.
- g) Supplier/Vendor has to submit an undertaking confirming the payment of all due GST in respect of invoices pertaining to BHEL.

4.2.9 Any financial loss arises to BHEL on account of failure or delay in submission of any document as per contract/purchase order/work order at the time of submission of Tax invoice to BHEL, shall be deducted from Supplier/Vendor's bill or otherwise as deemed fit.

4.2.10 TDS as applicable under GST law shall be deducted from Supplier/Vendor's bill.

4.2.11 Supplier/Vendor shall comply with the provisions of e-way bill wherever applicable. Further wherever provisions of GST Act permit, all the e-way bills, road permits etc. required for transportation of goods needs to be arranged by the contractor.

4.2.12 Supplier/Vendor shall be solely responsible for discharging his GST liability according to the provisions of GST Law and BHEL will not entertain any claim of GST/interest/penalty or any other liability on account of failure of Supplier/Vendor in complying the provisions of GST Law or discharging the GST liability in a manner laid down thereunder.

4.2.13 In case declaration of any invoice is delayed by the vendor in his GST return or any invoice is subsequently amended/alterd/deleted on GSTN portal which results in any adverse financial implication on BHEL, the financial impact thereof including interest/penalty shall be recovered from the Supplier/Vendor's due payment.

4.2.14 Any denial of input credit to BHEL or arising of any tax liability on BHEL due to noncompliance of GST Law by the Supplier/Vendor in any manner, will be recovered along with liability on account of interest and penalty (if any) from the payments due to the Supplier/Vendor.

For: - STRUCTURE INDIA



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4.2.15 In the event of any ambiguity in GST law with respect to availability of input credit of GST charged on the invoice raised by the contractor or with respect to any other matter having impact on BHEL, BHEL's decision shall be final and binding on the Supplier/Vendor.

4.2.16 Variation in Taxes & Duties:

Any upward variation in GST shall be considered for reimbursement provided supply of goods and services are made within schedule date stipulated in the contract or approved extended schedule for the reason solely attributable to BHEL. However downward variation shall be subject to adjustment as per actual GST applicability.

In case the Government imposes any new levy/tax on the output service/goods after price bid opening, the same shall be reimbursed by BHEL at actual. The reimbursement under this clause is restricted to the direct transaction between BHEL and its Supplier/Vendor only and within the contractual delivery period only.

In case any new tax/levy/duty etc. becomes applicable after the date of Bidder's offer but before opening of the price Bid, the Bidder/ Supplier/Vendor must convey its impact on his price duly substantiated by documentary evidence in support of the same before opening of price bid. Claim for any such impact after opening the price bid will not be considered by BHEL for reimbursement of tax or reassessment of offer.

4.3 Income Tax:

TDS/TCS as applicable under Income Tax Act, 1961 or rules made thereunder shall be deducted/collected from Supplier/Vendor's bill.

5. MATERIAL DISPATCH CLEARANCE CERTIFICATE (MDCC):

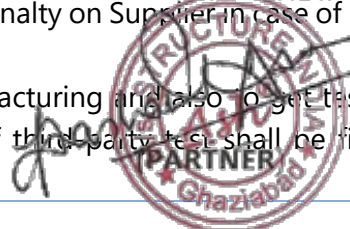
MDCC shall be issued by BHEL. No material shall be dispatched by supplier unless and until Material Dispatch Clearance Certificate (MDCC) issued by BHEL Site. In case any material is dispatched without MDCC and any loss is incurred by Supplier/Vendor for any reason whatsoever, BHEL shall not be responsible in any manner to compensate the supplier in this regard.

6. INSPECTION / INSPECTION & TESTING AT SUPPLIERS WORKS:

BHEL / BHEL TPI.

- The vendor must ensure that his correct works address (where inspection is to be performed) is updated in BHEL's CQIR portal right after ordering. The supplier shall not be entitled for delivery amendment in the event of delay in conduction of inspection due to non-availability of the correct address on BHEL's CQIR portal. The vendor may contact the concerned Purchase Officer for further details.
- Visit charges (paid by BHEL to the TPIA) shall be imposed as penalty on Supplier in case of material is not ready for inspection or the item is rejected.
- BHEL reserves the right to inspect the material during manufacturing and also to get tested the material under dispatch from third party. The test results of third party test shall be final and binding on the Supplier/Vendor.

For: - **STRUCTURE INDIA**



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- BHEL will reserve the right to inspect/test the material during/after manufacturing at suppliers' works, and/or at BHEL Site. In case of rejection at any stage, Supplier/Vendor shall be liable to replace the materials at his own cost.

7. **DELIVERY:**

Delivery period shall be **120 Days** from the date of GeM PO up to material receipt at project site shall be considered for delivery purpose.

Bidder must note the major timelines (included in above mentioned delivery period) mentioned below for order execution.

Above includes Inspection, Delivery etc. and following timelines:

S/N	Event	Days
1	PO acknowledgement by Vendor	03
2	First submission of Drawings, Data sheets and QAP Rev-00 by vendor	05
3	Commented / approved drawings / data sheets and QAP to vendor	07
4	Subsequent submission of revised drawings / data sheets and QAP by vendor	03
5	Subsequent Approved / commented Drawings and QP to vendor	05
6	Time Required to arrange Inspection after Inspection Call	03
7	Time to Issue IRN after Inspection	03
8	Time to Issue MDCC after issue of IRN	07
9	Time for P&F and Delivery	15
10	Time period for unloading of materials at project site	07

a). If the delivery of supply as detailed above gets delayed beyond the delivery period, the Supplier / Vendor shall request for a delivery extension and BHEL at its discretion may extend the Contract. However, if any 'Delivery extension' is granted to the Supplier/Vendor for completion of supply, due to backlog attributable to the Supplier/Vendor, then it shall be without prejudice to the rights of BHEL to impose LD for the delays attributable to the Supplier/Vendor.

b). In case BHEL increase the quantity during currency of the contract in line with quantity variation clause GeM bid, delivery extension on pro-rata basis shall be given for supply of these additional quantity.

8. **TRANSIT INSURANCE:**

Transit Insurance of material is in **BHEL** scope.

9. **PAYMENT TERMS:**

I. For full/complete PO Supplies in one Lot:

For: - **STRUCTURE INDIA**

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- a). FOR NON MSE Bidders, 100% payment shall be released within 90 days from the date of acknowledged receipt & acceptance of material at site and submission of billing documents as mentioned in sl. no. 10 below.
- b) FOR MSE Bidders, 100% payment shall be released within 45 days from the date of acknowledged receipt & acceptance of material at site and submission of billing documents as mentioned in sl. no. 10 below.
- c) FOR MEDIUM ENTERPRISES Bidders, 100% payment shall be released within 60 days upon receipt & acceptance of material at site and submission of billing documents as mentioned in sl. no. 10 below.

However, GST amount shall be reimbursed in line with compliance to GeM Clauses of Taxes & Duties.

II. For Part Supplies:

In case of part supplies, as regards basic price, only 90% shall be released as above on pro-rata basis and balance 10% shall be released on completion of total supplies or completion of each lot as defined as per PO Terms.

The payment timeline and GST payments shall be governed by Point (I) above, as applicable to the respective category of bidders.

Note:

A). Above due date is reckoned from the date of Receipt of material or date of submission of complete set of documents as per PO whichever is later. Objections, if any on the invoice, available on SUVIDHA portal need to be closed. In such instances, due date is reckoned from the closure of objections. Vendors are advised to get familiarized with the document exchange feature on SUVIDHA portal. Payment will be made for Material accepted value.

B). MSEs (covered under MSME Act) need to register and renew periodically and update the same with BHEL.

C). The taxes that are reimbursed are limited to applicable taxes as on the Purchase Order delivery date or the amount actually paid whichever is less.

D). Adherence to the above time schedule of payment is contingent upon Bidder complying with GST provisions and availment of Input Tax Credit by BHEL before the date of payment.

E). In case of packaged items, 10% of supply value will be retained till completion of total supplies.

F). Bidders to comply with respective Taxes and Duties clauses on GST requirements.

G) MSE benefits are not applicable to Traders/Wholesalers registered as MSEs.

FOR: STRUCTURE INDIA


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H) MSME vendors may avail the facility of invoice discounting through Trade Receivables Discounting System (TREDs) platforms like RXIL, INVOICEMART, M1XCHANGE and any other platforms on boarded from time to time.

b) NO INTEREST PAYABLE TO CONTRACTOR

No interest shall be payable on the security deposit or any other money due to the contractor".

9. **c) PAYMENT ZERO DATE:**

The (PRC in GeM) Provisional receipt certificate shall be issued/considered only after receipt of all the necessary dispatch documents along with site acknowledged LR at buyer Office.

The payment (basic excluding GST) will be done within specified time period as per GeM GTC from the date of PRC and CRAC. Zero date shall be the date of receipt of last document out of the following:

- 1) Dispatch/Billing documents hard copies,
- 2) scanned copy of site acknowledged LR.

As mentioned in Clause 10.

10. **DOCUMENTS REQUIRED ALONG WITH DISPATCH OF MATERIAL/BILLING DOCUMENTS:**

The following documents are required to be sent immediately on dispatch of material to BHEL HPEP:

- Two numbers of Original Tax Invoice/ e-invoice of GST Portal, if applicable.
- Packing list -Clearly showing number of packages, gross weight and net weight.
- Original Test certificates, Warranty/Guarantee certificates, O&M Manual (if specified in ANNEXURE)
- Insurance intimation/declaration certificate.
- Original Packing list with 02 nos. of photocopies of the same
- Pre-dispatch Inspection report/Third party Inspection certificates.
- Consignee copy of LR signed and stamped by Customer/Site representative for DD items.
- E-waybill
- MRC/Site acknowledged LR as POD (proof of delivery)-scanned copy.
- Upload of Documents is mandatory for material Entry.

Softcopies of the above documents shall be uploaded in SUVIDHA portal

<https://suvidha.bhel.in/suvidha/>

Vendor Bills tab. immediately after dispatch of the material. Upload of Documents is mandatory for material Entry and bill process.

Above billing documents (hard copies) to be sent to BHEL, HPEP Hyderabad office.

For: - STRUCTURE INDIA



Signature of the bidder with seal

11. BANK DETAILS FOR EMD & PERFORMANCE SECURITY SUBMISSION:

For Electronic Fund Transfer the details are as below:

- a) Name of the Beneficiary: Bharat Heavy Electricals Limited
- b) Bank Particulars (Details of Respectively executing region):
- | | |
|-------------------------------|--|
| Name of the Company | : BHARAT HEAVY ELECTRICALS LTD. |
| Address of the company | : R C Puram, Hyderabad |
| Name of the bank | : STATE BANK OF INDIA |
| Bank branch | : BHEL TOWNSHIP, RAMACHANDRAPURAM BRANCH |
| City | : HYDERABAD |
| Branch code | : 20075 |
| Account Number | : 62048154115 |
| Account type | : Current Account |
| IFSC code | : SBIN0020075 |
| MICR code | : 500002370 |

12. EMD: Applicable/ Not Applicable.

12.1 Every tender must be accompanied by the prescribed amount of Earnest Money Deposit (EMD) in the manner described herein.

Wherever the quantity is to be split on two or more suppliers, amount of EMD may be based on the maximum quantity envisaged on one Supplier.

- i. EMD shall be furnished before tender opening / along with the offer in full as per the amount indicated in the NIT.
- ii. The EMD up to an amount of Rs..... is to be paid only in the following forms:
 - a) Electronic Fund Transfer credited in BHEL account (before tender opening).
 - b) Banker's cheque/ Pay order/ Demand draft, in favour of 'Bharat Heavy Electricals Limited' and payable at Regional HQ issuing the tender (along with offer).
 - c) Fixed Deposit Receipt (FDR) issued by Scheduled Banks/ Public Financial Institutions as defined in the Companies Act (FDR should be in the name of the Contractor, a/c BHEL marking lien in favour of BHEL) (along with offer). The Fixed Deposit in such cases shall be valid for a period of 45 (forty-five) days beyond the final bid validity period.
 - d) Bank Guarantee from any of the Scheduled Banks. In such cases shall be valid for a period of 45 (forty-five) days beyond the final bid validity period.
 - e) Insurance Surety Bonds.

In case the EMD is more than Rs. Two lakh and in case of foreign bidders, it may be in the form of a bank guarantee (in equivalent Foreign Exchange amount, in case of foreign bidders) issued/ confirmed from any of the scheduled commercial bank in India in the prescribed format. The EMD shall remain valid for a period of 45 (forty-five) days beyond the final bid validity period.

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iii. No other form of EMD remittance shall be acceptable to BHEL.

12.2 EMD by the Bidder will be forfeited as per NIT conditions, if:

- i. The bidder withdraws or amends its/his tender or impairs or derogates from the tender in any respect within the period of validity of the tender or if the successful bidder fails to furnish the required performance security within the specified period mentioned in the Tender.
- ii. EMD by the Bidder shall be withheld in case any action on the tenderer is envisaged under the provisions of extant "Guidelines on Suspension of business dealings with suppliers/contractors" and shall be forfeited in case of suspension.

12.3 Subject to Clause 12.2 above, EMD of the unsuccessful bidders shall be returned at the earliest after expiry of the final bid validity period and latest by the 30th day after the award of the contract. However, in case of two packet or two stage bidding, EMD of unsuccessful bidders during first stage i.e., technical evaluation etc. shall be returned within 30 days of declaration of result of first stage i.e. technical evaluation etc.

12.4 EMD of successful Bidder shall be refunded on conclusion of the order/ receipt of a performance security as mentioned in NIT.

12.5 EMD shall not carry any interest.

12.6 Micro and Small Enterprises (MSEs) or Startups as recognized by Department for Promotion of Industry and Internal Trade (DPIIT) shall be exempted from payment of EMD.

13 PERFORMANCE SECURITY: *Applicable* / **Not Applicable**

13.1 Successful bidder awarded the contract should deposit% **of the contract value** as performance security towards fulfilment of all contractual obligations, including warranty obligations.

13.2 Performance Security is to be furnished within 14 days after issuance of Contract/PO and should remain valid for a period of 60 (sixty) days beyond the date of completion of all contractual obligations of the Supplier/Vendor, including warranty obligations.

13.3 Modes of deposit:

a) Performance security may be furnished in the following forms:

- i. Local cheques of Scheduled Banks (subject to realization)/ Pay Order/Demand Draft/ Electronic Fund Transfer in favour of 'Bharat Heavy Electricals Limited' and payable at Regional HQ.
- ii. Bank Guarantee from Scheduled Banks / Public Financial Institutions as defined in the Companies Act. The Bank Guarantee should be in the prescribed format of BHEL.
- iii. Fixed Deposit Receipt (FDR) issued by Scheduled Banks / Public Financial Institutions as defined in the Companies Act (FDR should be in the name of the Contractor, a/c BHEL).

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- iv. Securities available from Indian Post offices such as National Savings Certificates, Kisan Vikas Patras etc. (held in the name of Contractor furnishing the security and duly endorsed/ hypothecated/ pledged, as applicable, in favour of BHEL).
- v. Insurance Surety Bond.

Note: BHEL will not be liable or responsible in any manner for the collection of interest or renewal of the documents or in any other matter connected therewith.

b) In case of GTE tenders, the performance security should be in the same currency as the contract and must conform to Uniform Rules for Demand Guarantees (URDG 758) – an international convention regulating international securities.

13.4 The performance security will be forfeited and credited to BHEL's account in the event of a breach of contract by the Supplier/Vendor as provided herein or elsewhere in the Contract/PO.

13.5 Performance Security shall be refunded to the Supplier/Vendor without interest, after the Supplier/Vendor duly performs and completes the contract in all respects but not later than 60(sixty) days of completion of all such obligations including the warranty under the contract.

13.6 The Performance Security shall not carry any interest.

13.7 There is no exemption of Performance security deposit submission for MSE Vendors.

14 **BREACH OF CONTRACT, REMEDIES AND TERMINATION:**

14.1 The following shall amount to breach of contract:

- I. Non-supply of material/ non-completion of work by the Supplier/Vendor within scheduled delivery/ completion period as per contract or as extended from time to time.
- II. The Supplier/Vendor fails to perform as per the activity schedule and there are sufficient reasons even before expiry of the delivery/ completion period to justify that supplies shall be inordinately delayed beyond contractual delivery/ completion period.
- III. The Supplier/Vendor delivers equipment/ material not of the contracted quality.
- IV. The Supplier/Vendor fails to replace the defective equipment/ material/ component as per guarantee clause.
- V. Withdrawal from or abandonment of the work by the Supplier/Vendor before completion as per contract.
- VI. Assignment, transfer, subletting of Contract by the Supplier/Vendor without BHEL's written permission resulting in termination of Contract or part thereof by BHEL.
- VII. Non-compliance to any contractual condition or any other default attributable to Supplier/Vendor.

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14. VIII. Any other reason(s) attributable to Vendor towards failure of performance of contract.
In case of breach of contract, BHEL shall have the right to terminate the Purchase Order/ Contract either in whole or in part thereof without any compensation to the Supplier/Vendor.
- IX. Any of the declarations furnished by the contractor at the time of bidding and/ or entering into the contract for supply are found untruthful and such declarations were of a nature that could have resulted in non-award of contract to the contractor or could expose BHEL and/ or Owner to adverse consequences, financial or otherwise.
- X. Supplier/Vendor is convicted of any offence involving corrupt business practices, antinational activities or any such offence that compromises the business ethics of BHEL, in violation of the Integrity Pact entered into with BHEL has the potential to harm the overall business of BHEL/ Owner.
- Note-Once BHEL considers that a breach of contract has occurred on the part of Supplier/Vendor, BHEL shall notify the Supplier/Vendor by way of notice in this regard. Contractor shall be given an opportunity to rectify the reasons causing the breach of contract within a period of 14 days.
- In case the contractor fails to remedy the breach, as mentioned in the notice, to the satisfaction of BHEL, BHEL shall have the right to take recourse to any of the remedial actions available to it under the relevant provisions of contract.

14.2 Remedies in case of Breach of Contract

- i. Wherein the period as stipulated in the notice issued under clause 14.1 has expired and Supplier/Vendor has failed to remedy the breach, BHEL will have the right to terminate the contract on the ground of "Breach of Contract" without any further notice to contractor.
- ii. Upon termination of contract, BHEL shall be entitled to recover an amount equivalent to 10% of the Contract Value for the damages on account of breach of contract committed by the Supplier/Vendor. This amount shall be recovered by way of encashing the security instruments like performance bank guarantee etc available with BHEL against the said contract. In case the value of the security instruments available is less than 10% of the contract value, the balance amount shall be recovered from other financial remedies (i.e. available bills of the Supplier/Vendor, retention amount, from the money due to the Supplier/Vendor etc. with BHEL) or the other legal remedies shall be pursued.

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- iii. wherever the value of security instruments like performance bank guarantee available with BHEL against the said contract is 10% of the contract value or more, such security instruments to the extent of 10% contract value will be encashed. In case no security instruments are available or the value of the security instruments available is less than 10% of the contract value, the 10% of the contract value or the balance amount, as the case may be, will be recovered in all or any of the following manners:
 - a. from dues available in the form of Bills payable to defaulted Supplier/Vendor against the same contract.
 - b. If it is not possible to recover the dues available from the same contract or dues are insufficient to meet the recoverable amount, balance amount shall be recovered from any money(s) payable to Supplier/Vendor under any contract with other Units of BHEL including recovery from security deposits or any other deposit available in the form of security instruments of any kind against Security deposit or EMD.
 - c. In case the amount recovered under sub clause (a) above is not sufficient to fulfil the amount recoverable then; a demand notice to deposit the balance amount within 30 days shall be issued to Supplier/Vendor.
 - i. If Supplier/Vendor fails to deposit the balance amount within the period as prescribed in demand notice, following action shall be taken for recovery of the balance amount:
 - ii. In-case recoveries are not possible with any of the above available options, Legal action shall be initiated for recovery against defaulted supplier/Vendor.
- iv. It is an agreed term of contract that this amount shall be a genuine pre-estimate of damages that BHEL would incur in completion of balance contractual obligation of the contract through any other agency and BHEL will not be required to furnish any other evidence to the Supplier/Vendor for the purpose of estimation of damages.
- v. In addition to the above, imposition of liquidated damages, debarment, termination, de-scoping, short-closure, etc., shall be applied as per provisions of the contract.

Note:

- 1) The defaulting Supplier/Vendor shall not be eligible for participation in any of the future enquiries floated by BHEL to complete the balance work. The defaulting contractor shall mean and include:
 - a. In case defaulted Supplier/Vendor is the Sole Proprietorship Firm, any Sole Proprietorship Firm owned by same Sole Proprietor.
 - b. In case defaulted Supplier/Vendor is The Partnership Firm, any firm comprising of same partners/ some of the same partners; or sole proprietorship firm owned by any partner(s) as a sole proprietor.

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15.	<u>BILL TO/ SHIP TO ADDRESS:</u>	<u>Bill to:</u> Bharat Heavy Electricals Limited, HPEP, Ramachandrapuram, Hyderabad-502032 GSTIN – 36AAACB4146P1ZG <u>Ship to Address:</u> Will be intimated latter.												
16.	<u>GUARANTEE/WARRANTY:</u>	Guarantee period for Supply of Material shall be <u>24</u> <u>calendar months</u> from the date of last dispatch.												
17.	<u>MICRO AND SMALL ENTERPRISES (MSE):</u> Any Bidder falling under MSE category shall furnish the following details & submit documentary evidence/ Govt. Certificate etc. in support of the same along with their techno-commercial offer. <table border="1" data-bbox="178 751 1442 955"> <thead> <tr> <th>Type under MSE</th> <th>SC/ST owned</th> <th>Women owned</th> <th>Others (excluding SC/ ST & Women Owned)</th> </tr> </thead> <tbody> <tr> <td>Micro</td> <td></td> <td></td> <td></td> </tr> <tr> <td>Small</td> <td></td> <td></td> <td></td> </tr> </tbody> </table> Note: If the bidder does not furnish the above, offer shall be processed construing that the bidder is not falling under MSE category. a) MSE suppliers can avail the intended benefits in respect of the procurements related to the Goods and Services only (Definition of Goods and Services as enumerated by Govt. of India vide Office Memorandum F. No. 21(8)/2011-MA dtd. 09/11/2016 office of AS & DC, MSME) and subsequent amendments & clarifications only if they submit along with the offer, attested copies of Udyam Registration. Date to be reckoned for determining the deemed validity will be the last date of Technical Bid submission. Non-submission of supporting document in GeM portal will lead to consideration of their bids at par with other bidders. No benefits shall be applicable for this enquiry if the above required documents are not uploaded at the time of bid submission. Documents submitted by the bidder shall be verified by BHEL for rendering the applicable benefits.		Type under MSE	SC/ST owned	Women owned	Others (excluding SC/ ST & Women Owned)	Micro				Small			
Type under MSE	SC/ST owned	Women owned	Others (excluding SC/ ST & Women Owned)											
Micro														
Small														

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18. LIQUIDATED DAMAGE:**A. LD FOR DELAYED DELIVERY:**

Liquidated Damages, wherever referred under this Tender/Agreement, shall mean and refer to the damages, not in the nature of penalty, which the contractor agrees to pay in the event of delay in delivery of supplies, breach of contract etc. as the case may be.

Liquidated Damages leviable upon the Supplier/Vendor is a sum which is agreed by the parties as a reasonable and genuine pre-estimate of damages which will be suffered by BHEL on account of delay/breach on the part of the Supplier/Vendor.

If the Seller/Service Provider fails to deliver any or all of the Goods/Services within the original/re-fixed delivery period(s) specified in the contract/PO, the Buyer/BHEL will be entitled to deduct/recover the Liquidated Damages for the delay, unless covered under Force Majeure conditions aforesaid, **@ 0.5% of the contract value of delayed quantity per week or part of the week of delayed period as pre-estimated damages not exceeding 10% of the contract value of delayed quantity** without any controversy/dispute of any sort whatsoever.

B. ~~LD FOR DELAYED SERVICES~~ (Not Applicable for this Tender)

~~For Supervision of E&C: Enquiries where services are also included, LD on Services (or) Supervision of E&C is Not Applicable.~~

19. INTEGRITY PACT (IP): Applicable / Not Applicable

IP is a tool to ensure that activities and transactions between the Company and its Bidders/ Supplier/Vendor are handled in a fair, transparent and corruption free manner. Following Independent External Monitors (IEMs) on the present panel have been appointed by BHEL with the approval of CVC to oversee implementation of IP in BHEL.

Sl. No.	IEM	Email
1.	Dr Sharath Kumar Acharya	iem1@bhel.in
2.	Mr R Mukundan	iem2@bhel.in
3.	Mr Madan Lal Meena	iem3@bhel.in

- a) The IP as enclosed with the tender is to be submitted (duly signed by authorized signatory) along with techno-commercial bid (Part-I, in case of two/ three-part bid). Only those bidders who have entered into such an IP with BHEL would be competent to participate in the bidding. In other words, entering into this Pact would be a preliminary qualification.

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PARTNER
Ghaziabad

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19. **b)** Please refer Section-8 of IP for Role and Responsibilities of IEMs. In case of any complaint arising out of the tendering process, the matter may be referred to any of the above IEM(s). All correspondence with the IEMs shall be done through email only.

Note:

No routine correspondence shall be addressed to the IEM (phone/ post/ email) regarding the clarifications, time extensions or any other administrative queries, etc. on the tender issued. All such clarification/ issues shall be addressed directly to the tender issuing (procurement) department's officials whose contact details are as per Clause no. 21 below.

20. **PREFERENCE TO MAKE IN INDIA:**

For this procurement, the local content to categorize a Supplier/Vendor as a Class I local supplier/ Class II local Supplier/Non-Local Supplier and purchase preferences to Class I local supplier, is as defined in Public Procurement (Preference to Make in India), Order 2017 dated 04.06.2020 issued by DPIIT. In case of subsequent orders issued by the nodal ministry, changing the definition of local content for the items of the GeM Bid, the same shall be applicable even if issued after issue of this GeM Bid, but before opening of Part-II bids against this GeM Bid.

20.1 Compliance to Restrictions under Rule 144 (xi) of GFR 2017:

- I. Any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. The Competent Authority for the purpose of this Clause shall be the Registration Committee constituted by the Department for Promotion of Industry and Internal Trade (DPIIT).
- II. "Bidder" (including the term 'tenderer', 'consultant' or 'Service provider' in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.
- III. "Bidder from a country which shares a land border with India" for the purpose of this Clause means: -
 - a. An entity incorporated established or registered in such a country; or
 - b. A subsidiary of an entity incorporated established or registered in such a country; or
 - c. An entity substantially controlled through entities incorporated, established or registered in such a country; or
 - d. An entity whose beneficial owner is situated in such a country; or
 - e. An Indian (or other) agent of such an entity; or
 - f. A natural person who is a citizen of such a country; or
 - g. A consortium or joint venture where any member of the consortium or joint venture falls under any of the above.

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IV. The beneficial owner for the purpose of (III) above will be as under:

1. In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together or through one or more juridical person, has a controlling ownership interest or who exercises control through other means.

Explanation

- a. "Controlling ownership interest" means ownership of or entitlement to more than twenty-five per cent of shares or capital or profits of the company.

"Control" shall include the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholding or management rights or shareholder's agreements or voting agreements.

2. In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership.
3. In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person has ownership of or entitlement to more than fifteen percent of the property or capital or profits of the such association or body of individuals.
4. Where no natural person is identified under (1) or (2) or (3) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;
5. In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.

V. An Agent is a person employed to do any act for another, or to represent another in dealings with third person. Note:

- (i) The bidder shall provide undertaking for their compliance to this Clause, in the format provided in **Annexure-13**.
- (ii) Registration of the bidder with Competent Authority should be valid at the time of submission of bids and at the time of acceptance of the bids.

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21 Settlement of Dispute

If any dispute or difference of any kind whatsoever shall arise between BHEL and the Supplier/Vendor, arising out of the contract for the performance of the work whether during the progress of contract termination, abandonment or breach of the contract, it shall in the first place referred to Designated Engineer for amicable resolution by the parties. Designated Engineer (to be nominated by BHEL for settlement of disputes arising out of the contract) who within 60 days after being requested shall give written notice of his decision to the contractor. Save as hereinafter provided, such decision in respect of every matter so referred shall forthwith be given effect to by the Supplier/Vendor who shall proceed with the work with all due diligence, whether he or BHEL desires to resolve the dispute as hereinafter provided or not.

If after the Designated Engineer has given written notice of this decision to the party and no intention to pursue the dispute has been communicated to him by the affected party within 30 days from the receipt of such notice, the said decision shall become final and binding on the parties. In the event the Supplier/Vendor being dissatisfied with any such decision or if amicable settlement cannot be reached then all such disputed issues shall be resolved through conciliation in terms of the BHEL Conciliation Scheme 2018 as per Clause 21.1.

21.1 Conciliation:

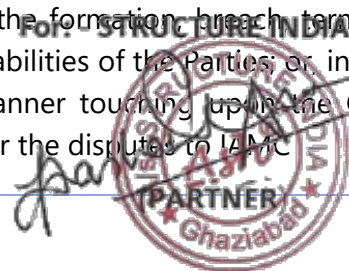
Any dispute, difference or controversy of whatever nature howsoever arising under or out of or in relation to this Agreement (including its interpretation) between the Parties, and so notified in writing by either Party to the other Party (the "Dispute") shall, in the first instance, be attempted to be resolved amicably in accordance with the conciliation procedure as per BHEL Conciliation Scheme 2018. The proceedings of Conciliation shall broadly be governed by PartIII of the Arbitration and Conciliation Act 1996 or any statutory modification thereof and as provided in - "Procedure for conduct of conciliation proceedings" (as available in www.bhel.com)).

Note: Ministry of Finance has issued OM reference No. 1/2/24 dated 03.06.2024 regarding "Guidelines for Arbitration and Mediation in Contracts of Domestic Public Procurement. In the said OM it has been recommended that Government departments/

Entities/agencies are to encourage mediation under the Mediation Act. 2023. The said Act has not yet been notified by the Government. Therefore, the clause "Settlement of Disputes" shall be modified accordingly as and when the Mediation Act 2023 gets notified.

21.2 ARBITRATION:

21.2.1 Except as provided elsewhere in this Contract, in case Parties are unable to reach amicable settlement (whether by Conciliation to be conducted as provided in Clause 14.1 herein above or otherwise) in respect of any dispute or difference; arising out of the formation, breach, termination, validity or execution of the Contract; or, the respective rights and liabilities of the Parties; or, in relation to interpretation of any provision of the Contract; or, in any manner touching upon the Contract (hereinafter referred to as the 'Dispute'), then, either Party may, refer the disputes to IARC



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(International Arbitration and Mediation Centre, Hyderabad) and such dispute to be adjudicated by Sole Arbitrator appointed in accordance with the IAMC Rules.

21.2.2 A party willing to commence arbitration proceeding shall invoke Arbitration Clause by giving notice to the other party in terms of section 21 of the Arbitration & Conciliation Act, 1996 (hereinafter referred to as the 'Notice') before referring the matter to arbitral institution. The Notice shall be addressed to the Head of the Region, Power Sector/ Unit, BHEL, executing the Contract and shall contain the particulars of all claims to be referred to arbitration with sufficient detail and shall also indicate the monetary amount of such claim including interest, if any.

21.2.3 After expiry of 30 days from the date of receipt of aforesaid notice, the party invoking the Arbitration shall submit that dispute to IAMC and that dispute shall be adjudicated in accordance with their respective Arbitration Rules. The matter shall be adjudicated by a Sole Arbitrator who shall necessarily be a Retd Judge having considerable experience in commercial matters to be appointed/nominated by the respective institution. The cost/expenses pertaining to the said Arbitration shall also be governed in accordance with the Rules of the respective Arbitral Institution. The decision of the party invoking the Arbitration for reference of dispute to a specific Arbitral institution for adjudication of that dispute shall be final and binding on both the parties and shall not be subject to any change thereafter. The institution once selected at the time of invocation of dispute shall remain unchanged.

21.2.4 The fee and expenses shall be borne by the parties as per the Arbitral Institutional rules.

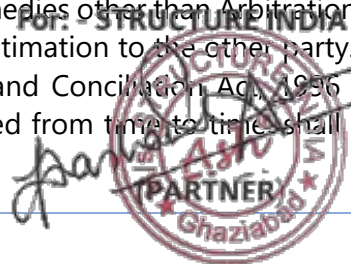
21.2.5 The Arbitration proceedings shall be in English language and the seat and venue of Arbitration shall be Hyderabad.

21.2.6 Subject to the above, the provisions of Arbitration & Conciliation Act 1996 and any amendment thereof shall be applicable. All matters relating to this Contract and arising out of invocation of Arbitration clause are subject to the exclusive jurisdiction of the Court(s) situated at Hyderabad.

21.02.7 Notwithstanding any reference to the Designated Engineer or Conciliation or Arbitration herein, a. the parties shall continue to perform their respective obligations under the Contract unless they otherwise agree. Settlement of Dispute clause cannot be invoked by the Contractor, if the Contract has been mutually closed or 'No Demand Certificate' has been furnished by the Contractor or any Settlement Agreement has been signed between the Employer and the Contractor.

21.2.8 It is agreed that Mechanism of resolution of disputes through arbitration shall be available only in the cases where the value of the dispute is less than Rs. 10 Crores.

21.2.9 In case the disputed amount (Claim, Counter claim including interest is Rs. 10 crores and above, the parties shall be within their rights to take recourse to remedies other than Arbitration, as may be available to them under the applicable laws after prior intimation to the other party. Subject to the aforesaid conditions, provisions of the Arbitration and Conciliation Act, 1996 and any statutory modifications or re-enactment thereof as amended from time to time shall apply to the arbitration proceedings under this clause.



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21.2.10 In case, multiple arbitrations are invoked (whether sub-judice or arbitral award passed) by any party to under this contract, then the cumulative value of claims (including interest claimed or awarded) in all such arbitrations shall be taken in account while arriving at the total claim in dispute for the subject contract for the purpose of clause 21.2.9. Disputes having cumulative value of less than 10 crores shall be resolved through arbitration and any additional dispute shall be adjudicated by the court of competent jurisdiction.

21.3 In case of Contract with Public Sector Enterprise (PSE) or a Government Department, the following shall be applicable:

In the event of any dispute or difference relating to the interpretation and application of the provisions of commercial contract(s) between Central Public Sector Enterprises (CPSEs)/ Port Trusts inter se and also between CPSEs and Government

Departments/Organizations (excluding disputes concerning Railways, Income Tax, Customs & Excise Departments), such dispute or difference shall be taken up by either party for resolution through AMRCD (Administrative Mechanism for Resolution of CPSEs Disputes) as mentioned in DPE OM No. 05/0003/2019-FTS-10937 dated 14-12-2022 as amended from time to time.

22 JURISDICTION

Subject to clause 21 of this contract, the Civil Court having original Civil Jurisdiction at Hyderabad shall alone have exclusive jurisdiction in regard to all matters in respect of the Contract.

GOVERNING LAWS

The contract shall be governed by the Law for the time being in force in the Republic of India.

23 Force Majeure

23.1 "Force Majeure" shall mean circumstance which is:

- a. beyond control of either of the parties to contract,
- b. either of the parties could not reasonably have provided against the event before entering into the contract,
- c. having arisen, either of the parties could not reasonably have avoided or overcome, and
- d. is not substantially attributable to either of the parties And Prevents the performance of the contract,

Such circumstances include but shall not be limited to:

- i. War, hostilities, invasion, act of foreign enemies.
- ii. Rebellion, terrorism, revolution, insurrection, military or usurped power, or civil war.
- iii. Riot, commotion or disorder by persons other than the contractor's personnel and other employees of the contractor and sub-contractors.
- iv. Strike or lockout not solely involving the contractor's personnel and other employees of the contractor and sub-contractors.

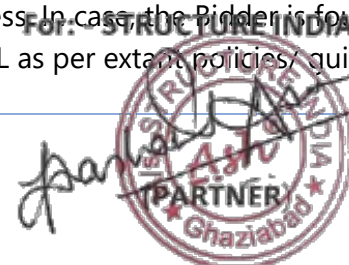
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	v. Encountering munitions of war, explosive materials, ionizing radiation or contamination by radio-activity, except as may be attributable to the contractor's use of such munitions, explosives, radiation or radio- activity. vi. Natural catastrophes such as earthquake, tsunami, volcanic activity, hurricane or typhoon, flood, fire, cyclones etc. vii. Epidemic, pandemic etc.
	23.2 The following events are explicitly excluded from Force Majeure and are solely the responsibilities of the non-performing party: a) any strike, work-to-rule action, go-slow or similar labour difficulty (b) late delivery of equipment or material (unless caused by Force Majeure event) and (c) economic hardship. 23.3 If either party is prevented, hindered or delayed from or in performing any of its obligations under the Contract by an event of Force Majeure, then it shall notify the other in writing of the occurrence of such event and the circumstances thereof within 15 (fifteen) days after the occurrence of such event. 23.4 The party who has given such notice shall be excused from the performance or punctual performance of its obligations under the Contract for so long as the relevant event of Force Majeure continues and to the extent that such party's performance is prevented, hindered or delayed. The Time for Completion shall be extended by a period of time equal to period of delay caused due to such Force Majeure event. 23.5 Delay or non-performance by either party hereto caused by the occurrence of any event of Force Majeure shall not v) Constitute a default or breach of the Contract. vi) Give rise to any claim for damages or additional cost expense occasioned thereby, if and to the extent that such delay or non-performance is caused by the occurrence of an event of Force Majeure. 23.6 BHEL at its discretion may consider short closure of contract after 1 year of imposition of Force Majeure in line with extant guidelines. In any case, Supplier/Vendor cannot consider deemed short-closure after 1 year of imposition of Force Majeure.
24	Non-Disclosure Agreement: The bidders shall enter into the Non-disclosure agreement separately. (Format attached).
25	Cartel Formation The Bidder declares that they will not enter into any illegal or undisclosed agreement or understanding, whether formal or informal with other Bidder(s). This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other actions to restrict competitiveness or to introduce cartelization in the bidding process. In case, the Bidder is found having indulged in above activities, suitable action shall be taken by BHEL as per extant policies/ guidelines.

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26 Fraud Prevention Policy

Bidder along with its associate /collaborators /sub-contractors /sub-vendors / consultants / service providers shall strictly adhere to BHEL Fraud Prevention Policy displayed on BHEL website <http://www.bhel.com> and shall immediately bring to the notice of BHEL Management about any fraud or suspected fraud as soon as it comes to their notice.

27 Suspension of Business Dealings with Suppliers / Contractors:

The offers of the bidders who are under suspension as also the offers of the bidders, who engage the services of the banned firms / principal / agents, shall be rejected. The list of banned firms is available on BHEL web site www.bhel.com.

If any bidder / supplier / contractor during pre-tendering / tendering / post tendering / award / execution / post-execution stage indulges in any act, including but not limited to, malpractices, cheating, bribery, fraud or and other misconduct or formation of cartel so as to influence the bidding process or influence the price or tampers the tendering process or acts or omits in any manner which tantamount to an offence punishable under any provision of the Indian Penal Code, 1860(Bhartiya Nyaya Samhita 2023) or any other law in force in India, or does anything which is actionable under the Guidelines for Suspension of Business dealings, action may be taken against such bidder / supplier / contractor as per extant guidelines of the company available on www.bhel.com and / or under applicable legal provisions. Guidelines for suspension of business dealings is available in the webpage: http://www.bhel.com/vender_registration/vender.php.

28 Bid should be free from correction, overwriting, using corrective fluid, etc. Any interlineation, cutting, erasure or overwriting shall be valid only if they are attested under full signature(s) of person(s) signing the bid else bid shall be liable for rejection. In the event of any Technical or Commercial queries, the same may please be addressed to the following BHEL concerned before Part I opening-

For Commercial Related Points (Procurement team)	For Technical related Points (Technical Team)
Mahesh Chithaluri; Manager/ Purchase (T&IP) Email id- cmahesh@bhel.in Ph. No. - 040-2318-2275	A V V S Vara Prasad; Manager/Engineering(T&IP), Email id- vara@bhel.in Ph. No. - 040-2318-2197

For: - STRUCTURE INDIA



Signature of the bidder with seal

29 Order of Precedence:

In the event of any ambiguity or conflict between the Tender Documents, the order of precedence shall be in the order below:

- a. Amendments/Clarifications/Corrigenda/Errata etc. issued in respect of the tender documents by BHEL.
- b. Special Terms & Conditions (if applicable)
- c. Buyer Added Bid Specific ATC
- d. GeM Bid Technical Conditions of Contract (TCC)
- e. GeM GTC

Further, in case of any contradiction between the above any two documents, the more stringent clause shall prevail as the order of preference. BHEL reserves the right to decide and enforce the same.

30 Notes:**1. GENERAL INSTRUCTIONS:**

- A. The quotation should be neatly typed and free from over writing/ erasures. Any correction or addition must be authenticated. The offer including annexures and brochures should be submitted in English. All Pages of Techno Commercial Bids (Main Pages), ATC should be signed and Stamped. Prices shall be quoted both in figures and words. In case of any discrepancy in value, the prices quoted in words shall be considered for evaluation and establishing L1 Status.
- B. Bidders to please note that the Terms & conditions contained in this document and ATC are to be read fully before submission of quotations.
- C. Bidders are advised to comply with ATC, should there be any deviations (where deviations are permitted), it shall be entered in the deviation column. BHEL reserves the right to reject such offers.
2. Excess materials supplied beyond tolerance limit as specified in PO will not be paid and bidder may raise credit note for the excess/unaccepted material as per GST law.
3. Rejected materials, if any, shall be collected by the bidder within 90 days of such communication to the bidder. Beyond this period the bidder forfeits their right to the materials.
4. Procurement directly from the manufacturers/ suppliers shall be preferred. However, no agent shall be allowed to represent more than one manufacturer/ supplier in the same tender. Moreover, either the agent could bid on behalf of the manufacturer/ supplier or the manufacturer / supplier could bid directly but not both. In case bids are received from both from the manufacturer/ supplier and the agent, bid received from the agent shall be ignored.
5. RIGHT OF REJECTION /NON- PLACEMENT OF PO: BHEL reserves the right to accept or reject any or all bid/s in full or part without assigning any reason whatsoever.
6. Inspection Measuring and Test Equipment (IMTE) used by the Bidder/ Contractor or sub-contractor shall be calibrated, maintained and controlled. Calibration shall be valid and IMTE maintained in sound condition during usage.
7. ISO-9001, ISO14001 and OHSAS 18001 shall be complied
8. Any other terms and conditions of the bidder attached/referred against the tender enquiry will not be considered.

For: - STRUCTURE INDIA



Signature of the bidder with seal

9. All drawings, patterns and tools supplied by BHEL or made at BHEL's expense are BHEL's property. These cannot be used or referred to any other party and must be used only in the execution of BHEL's orders.
10. Any amount payable by the bidder under any of the conditions of this contract shall be liable to be adjusted against any amount payable to the bidder under any other work / contract awarded by BHEL HPEP or any other BHEL Units. This is without prejudice to any other action as may be deemed fit by BHEL.
11. Execution: The whole contract is to be executed in the most workman like manner, substantial and approved as per the contracted terms.
12. Progress Report: The bidder shall render such report as to the progress of work and in such form as may be called for by the Buyer from time to time. The submission and acceptance of such reports shall not prejudice the rights of the buyer in any manner. Bidder shall communicate to BHEL immediately, the change of address, ownership, contact person(s), the mobile numbers and e-mail of the dealing person concerned. Milestones shall be periodically updated by bidder through PRADAN Portal (<https://web.bhelhyd.co.in/mm/>). Non updation will adversely affect service rating of bidder performance.
13. Quality and Condition of the Deliverables: The bidder shall be responsible for compliance with applicable technical, safety, quality, environmental requirements and other regulations in relation to products, packaging and raw and ancillary materials.
14. Packaging and Dispatch
The bidder shall package the deliverables safely and carefully and pack them suitably in all respects considering the peculiarity of the material for normal safe transport by sea/air/rail/road to its destination suitably protected against loss, damage, corrosion in transit and the effect of tropical salt laden atmosphere. The packages shall be provided with fixtures/hooks and sling marks as may be required for easy and safe handling by mechanical means. Special packaging conditions/environmental conditions as defined in the NIT shall be fully complied. Each package must be marked with consignee name, address, P.O. number, Package Number, gross weight & net weight, dimensions (L x B x H) and bidder's name. The packing shall allow for easy removal and checking of goods on receipt and comply with carrier's conditions of packing or established trade practices.
Packing list for goods inside each package with P.O. item No. & quantity must also be fixed securely outside the box to indicate the contents. If any consignment needs special handling instruction, the same shall be clearly marked with standard symbols/instructions. Hazardous material should be notified as such and their packing, transportation and other protection must conform to relevant regulations.
15. In the event of our customer order covering this tender being cancelled /placed on hold /otherwise modified, BHEL would be constrained to accordingly cancel / hold / modify the tender at any stage of execution.
16. BHEL may negotiate the L1 rate, if not meeting our budget / estimated cost. BHEL may re-float the tender opened, if L1 price is not acceptable to BHEL even after negotiation. Any deviation from the conditions specified in TECHNO-COMMERCIAL TERMS AND CONDITIONS, Annexure A, will lead to rejection of offer.



Signature of the bidder with seal

17. Any change in applicable rates of Tax or any other statutory levies (Direct / Indirect) or any new introduction of any levy by means of statute and its corresponding liability for the deliveries beyond the agreed delivery date for reasons not attributable to BHEL will be to vendors account. BHEL will not reimburse the same and any subsequent claim in this respect will be summarily rejected.
18. BHEL reserves its right to reject an offer due to unsatisfactory past performance by the respective Vendor in the execution of any contract to any BHEL project / Unit.
19. The offers of the bidders who are under suspension and also the offers of the bidders, who engage the services of the banned firms /principal/agents, shall be rejected. The list of banned firms is available on BHEL web site www.bhel.com.
20. Recovery / deduction as applicable as per Direct and Indirect taxes as notified by Govt. Of India from time to time will be made and information/certificate for such deduction/recoveries shall be provided by BHEL to the vendor.

21. Escalation Matrix

Details	Name	Contact Number	Authorised representative
Technical In-charge			
Finance & Taxation			
Escalation for above			

Changes may be communicated to BHEL.

31 Treatment of cases regarding conflict of interest:

The bidder notes that a conflict of interest would said to have occurred in the tender process and execution of the resultant contract, in case of any of the following situations:

- If its personnel have a close personal, financial, or business relationship with any personnel of BHEL who are directly or indirectly related to the procurement or execution process of the contract, which can affect the decision of BHEL directly or indirectly;
- The bidder (or his allied firm) provided services for the need assessment/ procurement planning of the Tender process in which it is participating;
- Procurement of goods directly from the manufacturers/ suppliers shall be preferred. However, if the OEM/ Principal insists on engaging the services of an agent, such agent shall not be allowed to represent more than one manufacturer / supplier in the same tender. Moreover, either the agent could bid on behalf of the manufacturer/ supplier or the manufacturer/ supplier could bid directly but not both. In case bids are received from both the manufacturer/ supplier and the agent, bid received from the agent shall be ignored. However, this shall not debar more than one Authorised distributor (with/ or without the OEM) from quoting equipment manufactured by an Original Equipment Manufacturer (OEM) in procurements under a Proprietary Article Certificate.
- A bidder participates in more than one bid in this tender process. Participation in any capacity by a Bidder (including the participation of a Bidder as a partner/ JV member or sub-contractor in another bid or vice-versa) in more than one bid shall result in the disqualification of all bids in which he is a

Signature of the bidder with seal

party. However, this does not limit the participation of an entity as a sub-contractor in more than one bid if he is not bidding independently in his own name or as a member of a JV.

The Bidder declares that they have read and understood the above aspects, and the bidder confirms that such conflict of interest does not exist and undertakes that they will not enter into any illegal or undisclosed agreement or understanding, whether formal or informal with other Bidder(s), in this regard. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other actions to restrict competitiveness or to introduce cartelization in the bidding process.

In case, the Bidder is found having indulged in above activities, the same will be considered as a violation of the tender conditions, and suitable action shall be taken by BHEL as per extant policies/ guidelines.

32 **Grievance Redressal Mechanism**

To promote transparency and ensure fair treatment of all bidders, a structured Grievance Redressal Mechanism is in place to address any concerns or issues arising during the tendering process or in subsequent business dealings with the company. Suppliers/Contractors are requested to follow the below escalation process for grievance resolution:

1. First Level: Any grievance should initially be addressed to the designated Dealing Officer, whose contact details are provided in the Notice Inviting Tender (NIT)/Contract.
2. Second Level: If the issue remains unresolved, it may be escalated by lodging a formal grievance through the SUVIDHA Portal:
<https://suvidha.bhel.in/suvidha/>. Responses will be provided in accordance with the defined escalation matrix."

Enclosure:

- 1) Annexure-1 to 18
- 2) All documents mentioned as Applicable in Checklist (Annexure-1) must be submitted along with offer.

For: - STRUCTURE INDIA



Signature of the bidder with seal

ANNEXURE- 1**CHECK LIST**

NOTE: - Suppliers are required to fill in the following details in their Letterhead and no column should be left blank

A	Name and Address of the Supplier		
B	GSTN No. the Supplier (Place of Execution of Contract / Purchase Order)		
C	Details of Contact person for this Tender	Name: Mr./ Ms. Designation: Telephone No: Mobile No: Email ID:	
D	EMD DETAILS	For: - STRUCTURE INDIA 	
E	DESCRIPTION	APPLICABILITY (BY BHEL)	ENCLOSED BY BIDDER
i.	Whether Pre - Qualification Criteria is understood and provided proper supporting documents.	Applicable/ Not Applicable	YES / NO
ii.	Whether all pages of the Tender documents including annexures, appendices etc are read and understood	Applicable/ Not Applicable	YES / NO
iii.	Audited Balance Sheet and profit & Loss Account for the last three years	Applicable/ Not Applicable	YES / NO
iv.	Copy of PAN Card & GST registration	Applicable/ Not Applicable	YES / NO
v.	Submission of MSE certificate as specified in Tender	Applicable/ Not Applicable	YES / NO
vi.	Submission of Certificate of No Deviation as per Annexure – 3	Applicable/ Not Applicable	YES / NO
vii.	Declaration regarding Insolvency/ Liquidation/ Bankruptcy Proceedings as per Annexure – 4	Applicable/ Not Applicable	YES / NO
viii.	Declaration by Authorized Signatory regarding Authenticity of submitted Documents Annexure – 6	Applicable/ Not Applicable	YES / NO
ix.	Submission of Non-Disclosure Certificate as per Annexure – 7	Applicable/ Not Applicable	YES / NO

x.	Submission of Integrity Pact as specified in Tender as per Annexure – 8	Applicable/ Not Applicable	YES / NO
xi.	Declaration confirming knowledge about Site Conditions as per Annexure – 9	Applicable/ Not Applicable	YES / NO
xii.	Declaration reg. Related Firms & their areas of Activities as per Annexure – 10	Applicable/ Not Applicable	YES / NO
xiii.	Declaration for relation in BHEL as per Annexure – 11	Applicable/ Not Applicable	YES / NO
xiv.	Declaration reg. minimum local content in line with revised public procurement as per Annexure – 12	Applicable/ Not Applicable	YES / NO
xv.	Declaration regarding compliance to Restrictions under Rule 144 (xi) of GFR 2017 as per Annexure – 13	Applicable/ Not Applicable	YES / NO
xvi.	Bank Account Details for E-Payment as per Annexure – 14	Applicable/ Not Applicable	YES / NO
xvii.	Proforma of Bank Guarantee for Earnest Money as per Annexure – 16	Applicable/ Not Applicable	YES / NO

NOTE: Strike off 'YES' or 'NO', as applicable. Tender not accompanied by the prescribed **above applicable documents** are liable to be summarily rejected.

DATE :

Sign. of the AUTHORISED SIGNATORY
(With Name, Designation and Company seal)

For: - STRUCTURE INDIA



ANNEXURE- 3

CERTIFICATE OF NO DEVIATION

(To be Typed & submitted in the Letter Head of the Company/Firm of Bidder)

----- To,

(Write Name & Address of Officer of BHEL inviting the Tender)

Dear Sir,

Subject: **No Deviation Certificate**

Ref: 1) GeM Bid No:
2) All other pertinent issues till date

We hereby confirm that we have not changed/ modified/materially altered any of the tender documents as downloaded from the website/ issued by BHEL and in case of such observance at any stage, it shall be treated as null and void.

We also hereby confirm that we have neither set any Terms and Conditions and nor have we taken any deviation from the Tender conditions together with other references applicable for the above referred GeM Bid.

We further confirm our unqualified acceptance to all Terms and Conditions, unqualified compliance to Tender Conditions.

We confirm to have submitted offer in accordance with tender instructions and as per aforesaid references.

Thanking you,

For: - STRUCTURE INDIA

A circular red stamp with the text "STRUCTURE INDIA" at the top, "PARTNER" in the center, and "Ghaziabad" at the bottom. A handwritten signature in black ink is written over the stamp.

Yours faithfully,

**(Signature, date & seal of authorized
representative of the bidder)**

Date:

Place:

ANNEXURE- 4

UNDERTAKING

(To be typed and submitted in the Letter Head of the Company/Firm of Bidder)

To,

(Write Name & Address of Officer of BHEL inviting the Tender)

Dear Sir/Madam,

Sub: DECLARATION REGARDING INSOLVENCY/ LIQUIDATION/ BANKRUPTCY PROCEEDINGS

Ref: GeM Bid Specification No:

I/We, _____ declare that,

I/We am/are not admitted under insolvency resolution process or liquidation under Insolvency and Bankruptcy Code, 2016, as amended from time to time or under any other law as on date, by NCLT or any adjudicating authority/authorities.

**Sign. of the AUTHORISED SIGNATORY
(With Name, Designation and Company seal)**

Place:

Date:

For: - STRUCTURE INDIA

A handwritten signature in black ink is written over a circular red stamp. The stamp contains the text 'STRUCTURE INDIA' at the top, 'PARTNER' in the center, and 'Ghaziabad' at the bottom, flanked by two red stars.

ANNEXURE – 6

DECLARATION BY AUTHORISED SIGNATORY OF BIDDER

(To be typed and submitted in the Letter Head of the Company/Firm of Bidder)

To,

(Write Name & Address of Officer of BHEL inviting the Tender)

Dear Sir,

Sub : **Declaration by Authorised Signatory regarding Authenticity of submitted documents.**

Ref : 1) GeM Bid No. & Date:

2) All other pertinent issues till date

I/We, hereby certify that all the documents submitted by us in support of possession of "Qualifying Requirements" are true copies of the original and are fully compliant required for qualifying / applying in the bid and shall produce the original of same as and when required by Bharat Heavy Electricals Limited.

I / We hereby further confirm that no tampering is done with documents submitted in support of our qualification as bidder. I / We understand that at any stage (during bidding process or while executing the awarded contract) if it is found that fake / false / forged bid qualifying / supporting documents / certificates were submitted, it would lead to summarily rejection of our bid / termination of contract. BHEL shall be at liberty to initiate other appropriate actions as per the terms of the Bid / Contract and other extant policies of Bharat Heavy Electricals Limited.

For: - STRUCTURE INDIA


Yours faithfully,

**(Signature, Date & Seal of Authorized
Signatory of the Bidder)**

Date:

ANNEXURE- 7

NON-DISCLOSURE CERTIFICATE

(To be Typed & submitted in the Letter Head of the Company/Firm of Bidder)

I/We understand that BHEL <**PS- Region**> is committed to Information Security Management System as per their Information Security Policy.

Hence, _____ I/We _____ M/s _____

who are submitting offer for providing services to BHEL <**PS- Region**> against GeM Bid No..... hereby undertake to comply with the following in line with Information Security Policy of <**PS- Region**>.

- To maintain confidentiality of documents & information which shall be used during the execution of the Contract.
- The documents & information shall not be revealed to or shared with third party which shall not be in the business interest of BHEL <**PS- Region**>.

**(Signature, date & seal of Authorized
Signatory of the bidder)**

Date:

For: - STRUCTURE INDIA



ANNEXURE – 9

DECLARATION CONFIRMING KNOWLEDGE ABOUT SITE CONDITIONS

(To be typed and submitted in the Letter Head of the Company/Firm of Bidder)

----- To,

(Write Name & Address of Officer of BHEL inviting the Tender)

Dear Sir,

Sub: Declaration confirming knowledge about Site conditions

Ref: 1) GeM Bid Specification No:

2) All other pertinent issues till date

I/We, _____ hereby declare and confirm that we have visited the Project Site as referred in BHEL Tender Specifications and acquired full knowledge and information about the Site conditions including Wage structure, Industrial Climate, the Law & Order and other conditions prevalent at and around the Site. We further confirm that the above information is true and correct and we shall not raise any claim of any nature due to lack of knowledge of Site conditions.

I/We, hereby offer to carry out work as detailed in above mentioned Tender Specification, in accordance with Terms & Conditions thereof.

Yours faithfully,

**(Signature, Date & Seal of Authorized
Representative of the Bidder)**

Date:

Place:

For: - STRUCTURE INDIA



ANNEXURE – 10**DECLARATION**

Date: _____

To,

(Write Name & Address of Officer of BHEL inviting the Tender)

Dear Sir/ Madam,

Sub: **Details of related firms and their area of activities**

Please find below details of firms owned by our family members that are doing business/ registered for same item with BHEL, _____ (NA, if not applicable)

1	Material Category/ Work Description	
	Name of Firm	
	Address of Firm	
	Nature of Business	
	Name of Family Member	
	Relationship	
2	Material Category/ Work Description	
	Name of Firm	
	Address of Firm	
	Nature of Business	
	Name of Family Member	
	Relationship	
...		

Note: I certify that the above information is true and I agree for penal action from BHEL in case any of the above information furnished is found to be false.

Regards,

(_____)

For: - STRUCTURE INDIA



From: M/s _____

Supplier Code: _____

Address: _____

ANNEXURE – 11

DECLARATION FOR RELATION IN BHEL

(To be typed and submitted in the Letter Head of the Company/Firm of Bidder failing which the offer of Bidder is liable to be summarily rejected)

----- To,

(Write Name & Address of Officer of BHEL inviting the Tender)

Dear Sir,

Sub: Declaration for relation in BHEL

Ref: 1) GeM Bid Specification No:

I/We hereby submit the following information pertaining to relation/relatives of Proprieter/Partner(s)/ Director(s) employed in BHEL

Tick (√) any one as applicable:

1. The Proprieter, Partner(s), Director(s) of our Company/Firm DO NOT have any relation or relatives employed in BHEL

OR

2. The Proprieter, Partner(s), or Director(s) of our Company/Firm HAVE relation/relatives employed in BHEL and their particulars are as below:

i.

ii

.

For: - STRUCTURE INDIA



(Signature, Date & Seal of Authorized Signatory of the Bidder)

Note:

1. Attach separate sheet, if necessary.
2. If BHEL Management comes to know at a later date that the information furnished by the Bidder is false, BHEL reserves the right to take suitable action against the Bidder/Contractor.

ANNEXURE – 12

**DECLARATION REGARDING MINIMUM LOCAL CONTENT IN LINE WITH
REVISED PUBLIC PROCUREMENT (PREFERENCE TO MAKE IN INDIA), ORDER 2017 DATED 04TH
JUNE, 2020 AND SUBSEQUENT ORDER(S)**

(To be typed and submitted in the Letter Head of the Entity/Firm providing certificate as applicable)

To,

(Write Name & Address of Officer of BHEL inviting the Tender)

Dear Sir,

Sub: Declaration reg. minimum local content in line with Public Procurement (Preference to Make in India), Order 2017-Revision, dated 04th June, 2020 and subsequent order(s).

Ref: 1) GeM Bid Specification No:
2) All other pertinent issues till date

We hereby certify that the items/works/services offered by..... (specify the name of the organization here) has a local content of _____ % and this meets the local content requirement for '**Class-I local supplier**' / '**Class II local supplier**' ** as defined in Public Procurement (Preference to Make in India), Order 2017-Revision dated 04.06.2020 issued by DPIIT and subsequent order(s).

The details of the location(s) at which the local value addition is made are as follows:

- | | |
|----------|----------|
| 1. _____ | 2. _____ |
| 3. _____ | 4. _____ |
| ... | |

Thanking you,
Yours faithfully,

For: - **STRUCTURE INDIA**



**(Signature, Date & Seal of
Authorized Signatory of the Bidder)**

**** - Strike out whichever is not applicable.**

Note:

- Bidders to note that above format, duly filled & signed by authorized signatory, shall be submitted along with the techno-commercial offer.

2. In case the bidder's quoted value is in excess of Rs. 10 crores, the authorized signatory for this declaration shall necessarily be the statutory auditor or cost auditor of the company (in the case of companies) or a practising cost accountant or practicing chartered accountant (in respect of suppliers other than companies).
3. In the event of false declaration, actions as per the above order and as per BHEL Guidelines shall be initiated against the bidder.

For: - STRUCTURE INDIA

[Handwritten signature]


ANNEXURE – 13

DECLARATION REGARDING COMPLIANCE TO RESTRICTIONS UNDER RULE 144 (xi) OF GFR 2017

(To be typed and submitted in the Letter Head of the Entity/ Firm providing certificate as applicable)

To,

(Write Name & Address of Officer of BHEL inviting the Tender)

Dear Sir,

Sub: Declaration regarding compliance to Restrictions under Rule 144 (xi) of GFR 2017

Ref: 1) GeM Bid Specification No:
2) All other pertinent issues till date

I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India. I certify that _____ (**SPECIFY THE NAME OF THE ORGANIZATION HERE**), is not from such a country/ has been registered with the Competent Authority (*attach valid registration by the Competent Authority, i.e., the Registration Committee constituted by the Dept. for Promotion of Industry and Internal Trade (DPIIT).*)

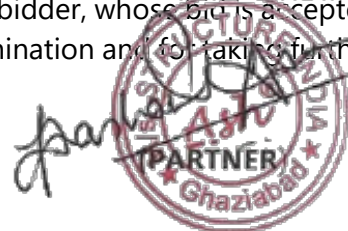
I hereby certify that we fulfil all requirements in this regard and is eligible to be considered.

Thanking you,
Yours faithfully,

**(Signature, Date & Seal of
Authorized Signatory of the Bidder)**

Note: Bidders to note that in case above certification given by a bidder, whose bid is accepted, is found to be false, then this would be a ground for immediate termination and for taking further action in accordance with law and as per BHEL guidelines.

For: - STRUCTURE INDIA



ANNEXURE – 14

BANK ACCOUNT DETAILS FOR E-PAYMENT

(To be given on Letter head of the Company /Firm of Bidder, and **ENDORSED (SIGNED & STAMPED)**
BY THE BANK to enable BHEL release payments through Electronic Fund Transfer (EFT/RTGS)

1. Beneficiary Name :

2. Beneficiary Account No. :

3. Bank Name & Branch :

4. City/Place :

5. 9 digit M ICR Code of Bank Branch :

6. IFSC Code of Bank Branch :

7. Beneficiary E-mail ID :
(for payment confirmation)

NOTE: In case Bank endorsed certificate regarding above has already been submitted earlier, kindly submit photocopy of the same

For: - STRUCTURE INDIA

A handwritten signature in black ink is written over a circular red stamp. The stamp contains the text "STRUCTURE INDIA" at the top, "PARTNER" in the center, and "Ghaziabad" at the bottom, separated by small stars.

ANNEXURE – 16**PROFORMA OF BANK GUARANTEE FOR EARNEST MONEY**

(On non-Judicial paper of appropriate value)

Bank Guarantee No.....**Date.....****To**

(Employer's Name and Address)

.....

Dear Sirs,

In accordance with the terms and conditions of Invitation for Bids/Notice Inviting Tender No.....¹(Tender Conditions), M/s. having its registered office at² (hereinafter referred to as the 'Tenderer'), is submitting its bid for the work of.....³ invited by⁴.(name of the Employer) through its Unit at(

The Tender Conditions provide that the Tenderer shall pay a sum of Rs as Earnest Money Deposit in the form therein mentioned. The form of payment of Earnest Money Deposit includes Bank Guarantee executed by a Scheduled Bank.

In lieu of the stipulations contained in the aforesaid Tender Conditions that an irrevocable and unconditional Bank Guarantee against Earnest Money Deposit for an amount of⁵ is required to be submitted by the Tenderer as a condition precedent for participation in the said Tender and the Tenderer having approached us for giving the said Guarantee,

we, the[Name & address of the Bank]

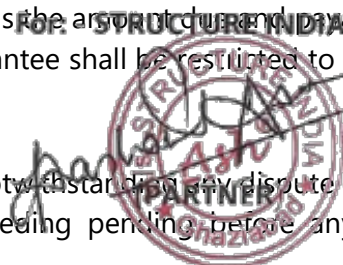
..... having our Registered Office at

.....(hereinafter referred to as the Bank) being the Guarantor under this Guarantee, hereby irrevocably and unconditionally undertake to forthwith and immediately pay to the Employer without any demur, merely on your first demand any sum or sums of Rs.

.....⁵ (in words Rupees.....) without any reservation, protest, and recourse and without the beneficiary needing to prove or demonstrate reasons for its such demand.

Any such demand made on the Bank shall be conclusive as regards the amount due and payable by the Bank under this guarantee. However, our liability under this guarantee shall be restricted to an amount not exceeding Rs.

We undertake to pay to the Employer any money so demanded notwithstanding any dispute or disputes raised by the Vendor/Contractor/Vendors in any suit or proceeding pending before any Court or



Tribunal, Arbitrator or any other authority, our liability under this present being absolute and unequivocal.

The payment so made by us under this Guarantee shall be a valid discharge of our liability for payment hereunder and the Tenderer shall have no claim against us for making such payment.

We Bank further agree that the Employer shall have the fullest liberty without our consent and without affecting in any manner our obligations hereunder to vary any of the terms and conditions of the said Tender or to extend the time of submission of from time to time or to postpone for any time or from time to time any of the powers exercisable by the Employer against the said Tenderer and we shall not be relieved from our liability by reason of any such variation, or extension being granted to the said Tenderer or for any forbearance, act or omission on the part of the Employer or any indulgence by the Employer to the said Tenderer or by any such matter or thing whatsoever which under the law relating to sureties would but for this provision have effect of so relieving us.

The Bank also agrees that the Employer at its option shall be entitled to enforce this Guarantee against the Bank as a principal debtor, in the first instance without proceeding against the Tenderer and notwithstanding any security or other guarantee that the Employer may have in relation to the Tenderer's liabilities.

This Guarantee shall be irrevocable and shall remain in force upto and including.....⁶ and shall be extended from time to time for such period as may be desired by the Employer.

This Guarantee shall not be determined or affected by liquidation or winding up, dissolution or change of constitution or insolvency of the Tenderer but shall in all respects and for all purposes be binding and operative until payment of all money payable to the Employer in terms hereof. However, unless a demand or claim under this Guarantee is made on us in writing on or before the⁷ we shall be discharged from all liabilities under this Guarantee.

This Bank Guarantee shall be governed, construed and interpreted in accordance with the laws of India.

Courts at shall alone have exclusive jurisdiction over any matter arising out of or in connection with this Bank Guarantee

We, Bank lastly undertake not to revoke this guarantee during its currency except with the previous consent of the Employer in writing.

Notwithstanding anything to the contrary contained hereinabove:

- a. The liability of the Bank under this Guarantee shall not exceed.....⁵
- b. This Guarantee shall be valid up to⁶
- c. Unless the Bank is served a written claim or demand on or before⁷ all rights under this guarantee shall be forfeited and the Bank shall be relieved and discharged from all liabilities under this guarantee irrespective of whether or not the original bank guarantee is returned to the Bank

For: - STRUCTURE INDIA



We, _____ Bank, have power to issue this Guarantee under law and the undersigned as a duly authorized person has full powers to sign this Guarantee on behalf of the Bank.

For and on behalf of
(Name of the Bank)

Date.....

Place of Issue.....

¹ Details of the Invitation to Bid/Notice Inviting

Tender ²

Name and Address of the Tenderer

³ Details of the Work ⁴

Name of the Employer ⁵

BG Amount in words and Figures

*⁶ Validity Date ⁷ Date of Expiry of
Claim Period*

Notes:

1. Units are advised that expiry of claim period may be kept 3-6 months after validity date. It may be ensured that the same is in line with the agreement/ contract entered with the Vendor.
2. The BG should be on Non-Judicial Stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the State(s) where the BG is submitted or is to be acted upon or the rate prevailing in the State where the BG was executed, whichever is higher. The Stamp Paper/e-stamp paper shall be purchased in the name of Contractor/sub-contractor /vendor/ Bank issuing the guarantee.
3. In line with the GCC, SCC or contractual terms, Unit may carry out minor modifications in the Standard BG Formats. If required, such modifications may be carried out after taking up appropriately with the Unit/Region's Law Deptt.
4. **In Case of Bank Guarantees submitted by Foreign Vendors-**
 - a. **From Nationalized/Public Sector / Private Sector/ Foreign Banks (BG issued by Branches in India)** can be accepted subject to the condition that the Bank Guarantee should be enforceable in the town/city or at nearest branch where the Unit is located i.e., Demand can be presented at the Branch located in the town/city or at nearest branch where the Unit is located.

- b. **From Foreign Banks (wherein Foreign Vendors intend to provide BG from local branch of the Vendor country's Bank)**

b.1 In such cases, in the Tender Enquiry/ Contract itself, it may be clearly specified that Bank Guarantee issued by **any of the Consortium Banks only** will be accepted by BHEL.



As such, Foreign Vendor needs to make necessary arrangements for issuance of Counter-Guarantee by Foreign Bank in favour of the Indian Bank's (BHEL's Consortium Bank) branch in India. It is advisable that all charges for issuance of Bank Guarantee/ counter-Guarantee should be borne by the Foreign Vendor. The tender stipulation should clearly specify these requirements.

b.2 In case, Foreign Vendors intend to provide BG from Overseas Branch of our Consortium Bank (e.g. if a BG is to be issued by SBI Frankfurt), the same is acceptable. However, the procedure at **sl.no. b.1** will required to be followed.

b.3 The BG issued may preferably be subject to Uniform Rules for Demand Guarantees (URDG) 758 (as amended from time to time). The BG Format provided to them should clearly specify the same.

For: - STRUCTURE INDIA



ANNEXURE – 17**BANK GUARANTEE FOR PERFORMANCE SECURITY**

(On non-Judicial paper of appropriate value)

Bank Guarantee No:

Date:

To

NAME

& ADDRESSES OF THE BENEFICIARY

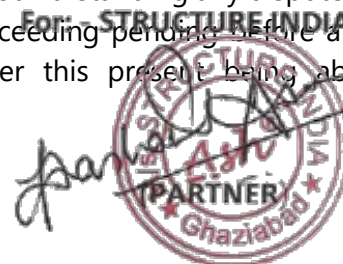
Dear Sirs,

In consideration of Bharat Heavy Electricals Limited (hereinafter referred to as the 'Employer' which expression shall unless repugnant to the context or meaning thereof, include its successors and permitted assigns) incorporated under the Companies Act, 1956 and having its registered office at _____¹ through its Unit at.....(name of the Unit) having awarded to (Name of the Vendor / Contractor / Supplier) with its registered office at _____² hereinafter referred to as the 'Vendor / Contractor / Supplier ', which expression shall unless repugnant to the context or meaning thereof, include its successors and permitted assigns), a contract Ref No.....dated³ valued at Rs.....⁴ (Rupees -----) / FC.....(in words.....) for⁵ (hereinafter called the 'Contract') and the Vendor / Contractor / Supplier having agreed to provide a Contract Performance Bank Guarantee, equivalent to% (.... Percent) of the said value of the Contract to the Employer for the faithful performance of the Contract,

We,, (hereinafter referred to as the Bank), having registered/Head office at and inter alia a branch at being the Guarantor under this Guarantee, hereby, irrevocably and unconditionally undertake to forthwith and immediately pay to the Employer any sum or sums upto a maximum amount of Rs -----⁶ (Rupees -----) without any demur, immediately on first demand from the Employer and without any reservation, protest, and recourse and without the Employer needing to prove or demonstrate reasons for its such demand.

Any such demand made on the Bank shall be conclusive as regards the amount due and payable by the Bank under this guarantee. However, our liability under this guarantee shall be restricted to an amount not exceeding Rs. _____.

We undertake to pay to the Employer any money so demanded notwithstanding any dispute or disputes raised by the Vendor / Contractor / Supplier in any suit or proceeding pending before any Court or Tribunal, Arbitrator or any other authority, our liability under this present being absolute and unequivocal.



The payment so made by us under this Guarantee shall be a valid discharge of our liability for payment thereunder and the Vendor / Contractor / Supplier shall have no claim against us for making such payment.

We thebank further agree that the guarantee herein contained shall remain in full force and effect during the period that would be taken for the performance of the said Contract/ satisfactory completion of the performance guarantee period as per the terms of the Contract and that it shall continue to be enforceable till all the dues of the Employer under or by virtue of the said Contract have been fully paid and its claims satisfied or discharged.

WeBANK further agree with the Employer that the Employer shall have the fullest liberty without our consent and without affecting in any manner our obligations hereunder to vary any of the terms and conditions of the said Contract or to extend time of performance by the said Vendor / Contractor / Supplier from time to time or to postpone for any time or from time to time any of the powers exercisable by the Employer against the said Vendor / Contractor / Supplier and to forbear or enforce any of the terms and conditions relating to the said Contract and we shall not be relieved from our liability by reason of any such variation, or extension being granted to the said Vendor / Contractor / Supplier or for any forbearance, act or omission on the part of the Employer or any indulgence by the Employer to the said Vendor / Contractor / Supplier or by any such matter or thing whatsoever which under the law relating to sureties would but for this provision have effect of so relieving us.

The Bank also agrees that the Employer at its option shall be entitled to enforce this Guarantee against the Bank as a principal debtor, in the first instance without proceeding against the Vendor / Contractor / Supplier and notwithstanding any security or other guarantee that the Employer may have in relation to the Vendor / Contractor / Supplier 's liabilities.

This Guarantee shall remain in force upto and including.....⁷ and shall be extended from time to time for such period as may be desired by Employer.

This Guarantee shall not be determined or affected by liquidation or winding up, dissolution or change of constitution or insolvency of the Vendor / Contractor / Supplier but shall in all respects and for all purposes be binding and operative until payment of all money payable to the Employer in terms thereof.

Unless a demand or claim under this guarantee is made on us in writing on or before the⁸ we shall be discharged from all liabilities under this guarantee thereafter.

This Bank Guarantee shall be governed, construed and interpreted in accordance with the laws of India.

Courts at shall alone have exclusive jurisdiction over any matter arising out of or in connection with this Bank Guarantee

We, BANK lastly undertake not to revoke this guarantee during its currency except with the previous consent of the Employer in writing.

Notwithstanding anything to the contrary contained hereinabove:



- a. The liability of the Bank under this Guarantee shall not exceed.....⁶
- b. This Guarantee shall be valid up to⁷
- c. Unless the Bank is served a written claim or demand on or before⁸ all rights under this guarantee shall be forfeited and the Bank shall be relieved and discharged from all liabilities under this guarantee irrespective of whether or not the original bank guarantee is returned to the Bank.

We, _____ Bank, have power to issue this Guarantee under law and the undersigned as a duly authorized person has full powers to sign this Guarantee on behalf of the Bank.

For and on behalf of (Name of the Bank) Dated.....

Place of Issue.....

¹

NAME AND ADDRESS OF EMPLOYER i.e., Bharat Heavy Electricals Limited ²

NAME AND ADDRESS OF THE VENDOR /CONTRACTOR / SUPPLIER. ³

DETAILS ABOUT THE NOTICE OF AWARD/CONTRACT REFERENCE ⁴

CONTRACT VALUE ⁵

PROJECT/SUPPLY DETAILS ⁶

BG AMOUNT IN FIGURES AND WORDS ⁷

VALIDITY DATE ⁸

DATE OF EXPIRY OF CLAIM PERIOD

For: - STRUCTURE INDIA



Note:

1. Units are advised that expiry of claim period may be kept 3-6 months after validity date. It may be ensured that the same is in line with the agreement/ contract entered with the Vendor.
2. The BG should be on Non-Judicial Stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the State(s) where the BG is submitted or is to be acted upon or the rate prevailing in the State where the BG was executed, whichever is higher. The Stamp Paper/e-stamp paper shall be purchased in the name of Vendor/Contractor/Supplier /Bank issuing the guarantee.
3. In line with the GCC, SCC or contractual terms, Unit may carry out minor modifications in the Standard BG Formats. If required, such modifications may be carried out after taking up appropriately with the Unit/Region's Law Deptt.
4. **In Case of Bank Guarantees submitted by Foreign Vendors-**
 - a. **From Nationalized/Public Sector / Private Sector/ Foreign Banks (BG issued by Branches in India)** can be accepted subject to the condition that the Bank Guarantee should be enforceable in the town/city or at nearest branch where the Unit is located i.e.

Demand can be presented at the Branch located in the town/city or at nearest branch where the Unit is located.

b. From Foreign Banks (wherein Foreign Vendors intend to provide BG from local branch of the Vendor country's Bank)

b.1 In such cases, in the Tender Enquiry/ Contract itself, it may be clearly specified that Bank Guarantee issued by **any of the Consortium Banks only** will be accepted by BHEL. As such, Foreign Vendor needs to make necessary arrangements for issuance of Counter-Guarantee by Foreign Bank in favour of the Indian Bank's (BHEL's Consortium Bank) branch in India. It is advisable that all charges for issuance of Bank Guarantee/ counter-Guarantee should be borne by the Foreign Vendor. The tender stipulation should clearly specify these requirements.

b.2 In case, Foreign Vendors intend to provide BG from Overseas Branch of our Consortium Bank (e.g. if a BG is to be issued by SBI Frankfurt), the same is acceptable. However, the procedure at **sl.no. b.1** will required to be followed.

b.3 The BG issued may preferably be subject to Uniform Rules for Demand Guarantees (URDG) 758 (as amended from time to time). The BG Format provided to them should clearly specify the same.

For: - STRUCTURE INDIA

A circular red stamp with the text "STRUCTURE INDIA" at the top, "PARTNER" in the center, and "Ghaziabad" at the bottom. A handwritten signature in black ink is written across the stamp.

ANNEXURE – 18**LIST OF CONSORTIUM BANK**

Sl. No.	NAME OF THE BANK
1	State Bank of India
2	Canara Bank
3	IDBI Bank Limited
4	ICICI Bank Limited
5	HDFC Bank Limited
6	Axis Bank
7	IndusInd Bank Limited
8	Bank of Baroda
9	Exim Bank
10	Indian Bank
11	Punjab National Bank
12	Union Bank of India
13	Yes Bank Limited
14	RBL Bank Ltd.
15	Standard Chartered Bank
16	Indian Overseas Bank
17	Kotak Mahindra Bank Limited
18	Federal Bank Limited
19	Hongkong and Shanghai Banking Corporation Ltd

For: **STRUCTURE INDIA**

INTEGRITY PACT**Between**

Bharat Heavy Electricals Ltd. (BHEL), a company registered under the Companies Act 1956 and having its registered office at "BHEL House", Siri Fort, New Delhi - 110049 (India) hereinafter referred to as "The Principal", which expression unless repugnant to the context or meaning hereof shall include its successors or assigns of the ONE PART

and

_____, (description of the party along with address), hereinafter referred to as "The Bidder/ Contractor" which expression unless repugnant to the context or meaning hereof shall include its successors or assigns of the OTHER PART

Preamble

The Principal intends to award, under laid-down organizational procedures, contract/s for _____

_____ (hereinafter referred to as "Contract"). The Principal values full compliance with all relevant laws of the land, rules and regulations, and the principles of economic use of resources, and of fairness and transparency in its relations with its Bidder(s)/ Contractor(s).

In order to achieve these goals, the Principal will appoint panel of Independent External Monitor(s) (IEMs), who will monitor the tender process and the execution of the contract for compliance with the principles mentioned above.

Section 1- Commitments of the Principal

- 1.1 The Principal commits itself to take all measures necessary to prevent corruption and to observe the following principles: -
 - 1.1.1 No employee of the Principal, personally or through family members, will in connection with the tender for, or the execution of a contract, demand, take a promise for or accept, for self or third person, any material or immaterial benefit which the person is not legally entitled to.
 - 1.1.2 The Principal will, during the tender process treat all Bidder(s) with equity and reason. The Principal will in particular, before and during the tender process, provide to all Bidder(s) the same information and will not provide to any Bidder(s) confidential/ additional information through which the Bidder(s) could obtain an advantage in relation to the tender process or the contract execution.
 - 1.1.3 The Principal will exclude from the process all known prejudiced persons.
- 1.2 If the Principal obtains information on the conduct of any of its employees which is a penal offence under the Bharatiya Nyaya Sanhita (BNS) 2023 and Prevention of Corruption Act 1988 or any other statutory penal enactment, or if there be a substantive suspicion in this regard, the Principal will inform its Vigilance Office and in addition can initiate disciplinary actions.

Section 2 - Commitments of the Bidder(s)/ Contractor(s)

- 2.1 The Bidder(s)/ Contractor(s) commit himself to take all measures necessary to prevent corruption. The Bidder(s)/ Contractor(s) commits himself to observe the following principles during participation in the tender process and during the contract execution.

For: **STRUCTURE INDIA**

 PARTNER
 Ghaziabad

- 2.1.1 The Bidder(s)/ Contractor(s) will not, directly or through any other person or firm, offer, promise or give to the Principal or to any of the Principal's employees involved in the tender process or the execution of the contract or to any third person any material, immaterial or any other benefit which he/ she is not legally entitled to, in order to obtain in exchange any advantage of any kind whatsoever during the tender process or during the execution of the contract.
- 2.1.2 The Bidder(s)/ Contractor(s) will not enter with other Bidder(s) into any illegal or undisclosed agreement or understanding, whether formal or informal. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other actions to restrict competitiveness or to introduce cartelization in the bidding process.
- 2.1.3 The Bidder(s)/ Contractor(s) will not commit any penal offence under the relevant Bharatiya Nyaya Sanhita (BNS) and Prevention of Corruption Act; further the Bidder(s)/ Contractor(s) will not use improperly, for purposes of competition or personal gain, or pass on to others, any information or document provided by the Principal as part of the business relationship, regarding plans, technical proposals and business details, including information contained or transmitted electronically.
- 2.1.4 Foreign Bidder(s)/ Contractor(s) shall disclose the name and address of agents and representatives in India and Indian Bidder(s)/ Contractor(s) to disclose their foreign principals or associates. The Bidder(s)/ Contractor(s) will, when presenting his bid, disclose any and all payments he has made, and is committed to or intends to make to agents, brokers or any other intermediaries in connection with the award of the contract.
- 2.2 The Bidder(s)/ Contractor(s) will not instigate third persons to commit offences outlined above or be an accessory to such offences.
- 2.3 The Bidder(s)/ Contractor(s) shall not approach the Courts while representing the matters to IEMs and shall await their decision in the matter.

Section 3 - Disqualification from tender process and exclusion from future contracts

If the Bidder(s)/ Contractor(s), before award or during execution has committed a transgression through a violation of Section 2 above, or acts in any other manner such as to put his reliability or credibility in question, the Principal is entitled to disqualify the Bidder(s)/ Contractor(s) from the tender process, terminate the contract, if already awarded, exclude from future business dealings and/ or take action as per the separate "Guidelines on Banning of Business dealings with Suppliers/ Contractors", framed by the Principal.

Section 4 - Compensation for Damages

- 4.1 If the Principal has disqualified the Bidder (s) from the tender process before award / order acceptance according to Section 3, the Principal is entitled to demand and recover the damages equivalent to Earnest Money Deposit/ Bid Security.
- 4.2 If the Principal is entitled to terminate the Contract according to Section 3, or terminates the Contract in application of Section 3 above, the Bidder(s)/ Contractor (s) transgression through a violation of Section 2 above shall be construed breach of contract and the Principal shall be entitled to demand and recover from the Contractor an amount equal to 5% of the contract value or the amount equivalent to Security Deposit/ Performance Bank Guarantee, whichever is higher, as damages, in addition to and without prejudice to its right to demand and recover compensation for any other loss or damages specified elsewhere in the contract.

For: **STRUCTURE INDIA**


Section 5 - Previous Transgression

- 5.1 The Bidder declares that no previous transgressions occurred in the last 3 (three) years (to be reckoned from date of bid submission) with any other company in any country conforming to the anti-corruption approach in India that could justify his exclusion from the tender process. The date of such transgression, for the purpose of disclosure by the bidders in this regard, would be the date on which cognizance of the said transgression was taken by the competent authority. The transgression(s), for which cognizance was taken even before the said period of three years, but are pending conclusion, shall also be reported by the bidders.
- 5.2 If the Bidder makes incorrect statement on this subject, he can be disqualified from the tender process or the contract, if already awarded, can be terminated for such reason or action can be taken as per the separate "Guidelines on Banning of Business dealings with Suppliers/ Contractors", framed by the Principal.

Section 6 - Equal treatment of all Bidder (s)/ Contractor (s) / Sub-contractor (s)

- 6.1 The Principal will enter into Integrity Pacts with identical conditions as this Integrity Pact with all Bidders and Contractors.
- 6.2 In case of a joint venture, all the partners of the joint venture should sign the Integrity Pact. In case of Sub-contracting, the Principal Contractor shall be solely responsible for the adherence to the provisions of IP by the sub-contractor(s).
- 6.3 The Principal will disqualify from the tender process all Bidders who do not sign this Integrity Pact or violate its provisions.

Section 7 - Criminal Charges against violating Bidders/ Contractors /Subcontractors

If the Principal obtains knowledge of conduct of a Bidder, Contractor or Subcontractor, or of an employee or a representative or an associate of a Bidder, Contractor or Subcontractor which constitutes corruption, or if the Principal has substantive suspicion in this regard, the Principal will inform the Vigilance Office.

Section 8 -Independent External Monitor(s)

- 8.1 The Principal appoints competent and credible panel of Independent External Monitor (s) (IEMs) for this Integrity Pact. The task of the IEMs is to review independently and objectively, whether and to what extent the parties comply with the obligations under this Integrity Pact on receipt of any complaint by them from the bidder(s).
- 8.2 The IEMs are not subject to instructions by the representatives of the parties and performs his functions neutrally and independently. He reports to the CMD, BHEL.
- 8.3 The IEMs shall be provided access to all documents/ records pertaining to the Contract, for which a complaint or issue is raised before them as and when warranted. However, the documents/records/information having National Security implications and those documents which have been classified as /Top Secret are not to be disclosed.
- 8.4 The Principal will provide to the IEMs sufficient information about all meetings among the parties related to the Contract provided such meetings could have an impact on the contractual relations between the Principal and the Contractor. The parties offer to the IEMs the option to participate in such meetings.
- 8.5 The role of IEM is advisory and the advice of IEM is non- binding on the Organization. However, as IEMs are invariably persons with rich experience who have retired as senior functionaries of the government, their advice would help in proper implementation of the IP.



- 8.6 For ensuring the desired transparency and objectivity in dealing with the complaints arising out of the tendering process, the matter should be examined by the full panel of IEMs jointly, who would look into the records, conduct an examination, and submit their joint recommendations to the Management. In case the full panel is not available due to some unavoidable reasons, the available IEM(s) will conduct examination of the complaints. Consent of the IEM(s), who may not be available, shall be taken on record.
- 8.7 The IEMs shall examine all the representations/grievances/ complaints received by them from the bidders or their authorized representative related to any discrimination on account of lack of fair play in modes of procurement and bidding systems, tendering method, eligibility conditions, bid evaluation criteria, commercial terms & conditions, choice of technology/ specifications etc.
- 8.8 The CMD, BHEL shall decide the compensation to be paid to the IEMs and its terms and conditions.
- 8.9 IEMs should examine the process integrity, they are not expected to concern themselves with fixing of responsibility of officers. Complaints alleging mala fide on the part of any officer of the Principal should be looked into by the CVO of the Principal.
- 8.10 If the IEMs have reported to the CMD, BHEL, a substantiated suspicion of an offence under relevant Bharatiya Nyaya Sanhita (BNS)/ Prevention of Corruption Act, and the CMD, BHEL has not, within reasonable time, taken visible action to proceed against such offence or reported it to the Vigilance Office, the IEMs may also transmit this information directly to the Central Vigilance Commissioner, Government of India.
- 8.11 After award of work, the IEMs shall look into any issue relating to execution of Contract, if specifically raised before them. As an illustrative example, if a Contractor who has been awarded the Contract, during the execution of Contract, raises issue of delayed payment etc. before the IEMs, the same shall be examined by the panel of IEMs.
- 8.12 However, the IEMs may suggest systemic improvements to the management of the Principal, if considered necessary, to bring about transparency, equity and fairness in the system of procurement.
- 8.13 The word 'Monitor' would include both singular and plural.

Section 9 - Pact Duration

- 9.1 This Integrity Pact shall be operative from the date this Integrity Pact is signed by both the parties. Any violation of the same would entail disqualification of the bidders and exclusion from future business dealings.
- 9.2 If any claim is made/ lodged during currency of this Integrity Pact, the same shall be binding and continue to be valid despite the lapse of this Pact as specified above, unless it is discharged/ determined by the CMD, BHEL.

Section 10 - Other Provisions

- 10.1 This Integrity Pact is subject to Indian Laws and exclusive jurisdiction shall be of the competent Courts as indicated in the Tender or Contract, as the case may be.
- 10.2 Changes and supplements as well as termination notices need to be made in writing.

For: - STRUCTURE INDIA

[Handwritten Signature]


- 10.3 If the Bidder(s)/ Contractor(s) is a partnership or a consortium or a joint venture, this Integrity Pact shall be signed by all partners of the partnership or joint venture or all consortium members.
- 10.4 Should one or several provisions of this Integrity Pact turn out to be invalid, the remainder of this Integrity Pact remains valid. In this case, the parties will strive to come to an agreement to their original intentions.
- 10.5 Only those bidders / contractors who have entered into this Integrity Pact with the Principal would be competent to participate in the bidding. In other words, entering into this Integrity Pact would be a preliminary qualification.
- 10.6 In the event of any dispute between the Principal and Bidder(s)/ Contractor(s) relating to the Contract, in case, both the parties are agreeable, they may try to settle dispute through Mediation before the panel of IEMs in a time bound manner. If required, the Principal may adopt any mediation rules for this purpose. However, not more than five meetings shall be held for a particular dispute resolution. The fees/expenses on dispute resolution shall be equally shared by both the parties. In case, the dispute remains unresolved even after mediation by the panel of IEMs, either party may take further action as the terms & conditions of the Contract.

For & On behalf of the Principal
(Office Seal)

Place _____

Date _____

Witness: _____
(Name & Address) _____

For & On behalf of the Bidder/ Contractor
(Office Seal)

Witness: _____
(Name & Address) _____

For: - STRUCTURE INDIA



TECHNICAL REQUIREMENTS & SPECIFICATIONS

For: - STRUCTURE INDIA



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COPYRIGHT AND CONFIDENTIAL The information on this document is the property of BHARAT HEAVY ELECTRICALS LIMITED, It must not be used directly or indirectly in any way detrimental to the interest of the company. <u>TECHNICAL SPECIFICATIONS FOR EARTHING MATERIAL</u> 1.0 PHYSICAL PROPERTIES 1.1 Material Dimensions, Tolerances etc., shall be inline with mild steel as per provisions of IS 2062 as applicable on the date of enquiry. 1.2 Hot dip galvanizing shall be done on the material as per the provisions of IS 2629 as applicable on the date of enquiry. 1.3 Minimum 75 microns of Zinc coating shall be ensured during galvanizing. This is in addition to provisions of IS 4759 as applicable on the date of enquiry. 1.4 MS rods shall be procured from reputed vendors like SAIL / RINL / TISCO/ JINDAL / ESSAR STEEL. 1.5 GI wires shall be supplied as per IS-280 and minimum Mass of coating for GI wires shall be Heavily coated as per IS-4826. 2.0 STANDARD LENGTH: 2.1 GI strips shall be delivered in lengths of 5.5m ± 0.25m. 2.2 GI wires shall be delivered in 100 meters rolls. 2.3 MS rods shall be delivered in lengths of 6.0m without any –ve tolerance. 3.0 TESTS Following tests will be conducted in presence of purchaser/purchaser representative: Inspection of dimensions, finish surface defects, thickness, Mass & uniformity of zinc coating, adhesion test, Wrapping/ bending of GI wires as per provisions of IS2062, 280, 2629, 2633, 6745 as applicable on the date of enquiry. Test certificates for the same shall be furnished, establishing the suitability of material, In 6 sets for our records within one week after the inspection. Test certificate for chemical & physical properties of Raw materials i.e. Steel Flats/Wire/Rods shall be tested as per IS-2062, IS-280 from NABL approved lab/government approved laboratory and same shall be made available by vendor at the time of inspection.					
Ref. Doc	Revisions : Refer to record of revisions :	Prepared : Sd/- (G.Seshu Kiran)	Approved : _____ Date : _____ Sd/ (J.L. Patten) 27-04-2013		

For: - STRUCTURE INDIA

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			Rev No. 05												
			PAGE 3 of 6												
COPYRIGHT AND CONFIDENTIAL The information on this document is the property of BHARAT HEAVY ELECTRICALS LIMITED . It must not be used directly or indirectly in any way detrimental to the interest of the company. 5.0 STANDARD FORMATS: (a) CHECK LIST FOR BIDDER: (TO BE FILLED BY BIDDER AND SUBMITTED ALONG WITH TECHNICAL OFFER) Enquiry No. Date : _____ Name of the Bidder : _____ Project : _____ Specification No : PY55001, Rev-05 Item : Earthing Material <table border="1" style="width: 100%; border-collapse: collapse;"> <thead> <tr> <th style="width: 10%;">Sl. No.</th> <th style="width: 70%;">Check point description</th> <th style="width: 20%;">Bidder Compliance</th> </tr> </thead> <tbody> <tr> <td>1.</td> <td>Duly signed Deviation Schedule(Technical) enclosed</td> <td>Yes/No</td> </tr> <tr> <td>2.</td> <td>Signed & stamped unpriced price format enclosed</td> <td>Yes/No</td> </tr> <tr> <td>3.</td> <td>Duly signed & stamped Technical Specification</td> <td>Yes/No</td> </tr> </tbody> </table> Note: Bidder shall strictly fill up the check list as applicable and submit along with the offer. No deviation is acceptable in this regard. Without duly signed & stamped checklist, offer shall not be considered for evaluation. ----- BIDDER'S STAMP & SIGNATURE For: - STRUCTURE INDIA 				Sl. No.	Check point description	Bidder Compliance	1.	Duly signed Deviation Schedule(Technical) enclosed	Yes/ No	2.	Signed & stamped unpriced price format enclosed	Yes/ No	3.	Duly signed & stamped Technical Specification	Yes/ No
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(b) DEVIATION SCHEDULE (TECHNICAL)

Enquiry No. Date :
 Name of the Bidder :
 Project :
 Specification No : PY55001, Rev-05
 Item : Earthing Material

Sl. No.	Clause.no. & Spec.no	Description as per specification	Deviation taken	Nature of Deviation	Remarks

NOTES

- Deviation to tender documents, if any, shall be indicated only in this schedule.
- Deviations, if any, shall be clearly brought out only in this format. Deviations mentioned / taken elsewhere or in any other format will be ignored.
- The vendor, if necessary can attach additional sheets in the same format.
- Nature of Deviations shall only be of Design / Manufacturing constraints and non-availability of items / components / makes in market.
- No price implications shall be entertained for deviations withdrawn during the technical scrutiny. If any deviations are accepted by BHEL during technical scrutiny then also there will be no price implication. Hence, in no case there will be consideration of Price implications.
- Reasons for the deviations shall be specified in the Remarks column.
- If there are no deviations from the specifications, bidder still has to submit the Deviation Schedule by writing “NO Deviations” in this format.**
- If the “Deviation Schedule” is not submitted along with the offer, the bidder’s offer is likely to be rejected without any further interaction with the bidder.
- Only the accepted deviations in conjunction with the original tender shall constitute the contract document for the award of job to the bidder.

(Signature of the Bidder with Seal)

For: - STRUCTURE INDIA



Ref. Doc

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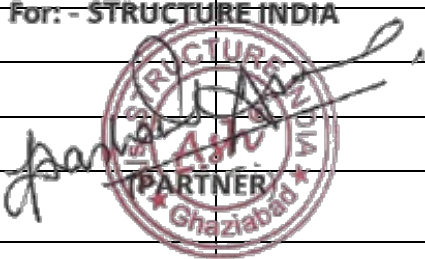
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	00	27-04-2013	ORIGINAL ISSUE	----	Sd/- J.K Pattanaik
	01	26-04-2019	Cl. 5 & 6 are Added.	Sd/- A V Suresh	Sd/- P Suresh
	02	17-04-2020	Variant no. 15 added.	Sd/- Vara Prasad	Sd/- P Suresh
	03	03-07-2021	Variant no. 16 added.	Sd/- Ch Mahesh	Sd/- Saroj Kumar
	04	26-05-2023	Cl 1.5 & 1.6 added and Cl 3 updated.	Sd/- Shadab Ahmed	Sd/- Abu Tahir Malick
	05	10-03-2026	Variant no. 17 & 18 added	G.Seshu Kiran	P.Suresh

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Ref. Doc	Revisions : Refer to record of revisions :	Prepared : Sd/- G.Seshu Kiran	Approved : Sd- J.K Pattanaik	Date : 27-04-13																																		

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	00	27-04-2013	Original Issue	Sd/-	Sd/- J.K Pattanaik	
	01	02-01-2018	Technical details of 40mm MS rod electrode and 65mm Cu pipe electrode	Sd/- G Seshu Kiran	Sd/- P Suresh	
	02	26-07-2019	40mm GI Pipe electrode details-Fig7 added.	Sd/- Ch Mahesh	Sd/- P Suresh	
	03	10-04-2021	100mm dia C.I pipe electrode details-Fig. 8 added	Sd/- GRM / AVS	Sd/- P Suresh	
	04	03-07-2021	65mm dia,6Mtrs Long G.I pipe electrode details-Fig. 9 added	Sd/- Ch Mahesh	Sd/- Saroj Kumar	
	05	10-08-2024	Plate electrode with copper strip details-Fig. 10 added	Sd/- GRM / AVS	Sd/- Saroj Kumar	
	Ref. Doc.				For: - STRUCTURE INDIA 	



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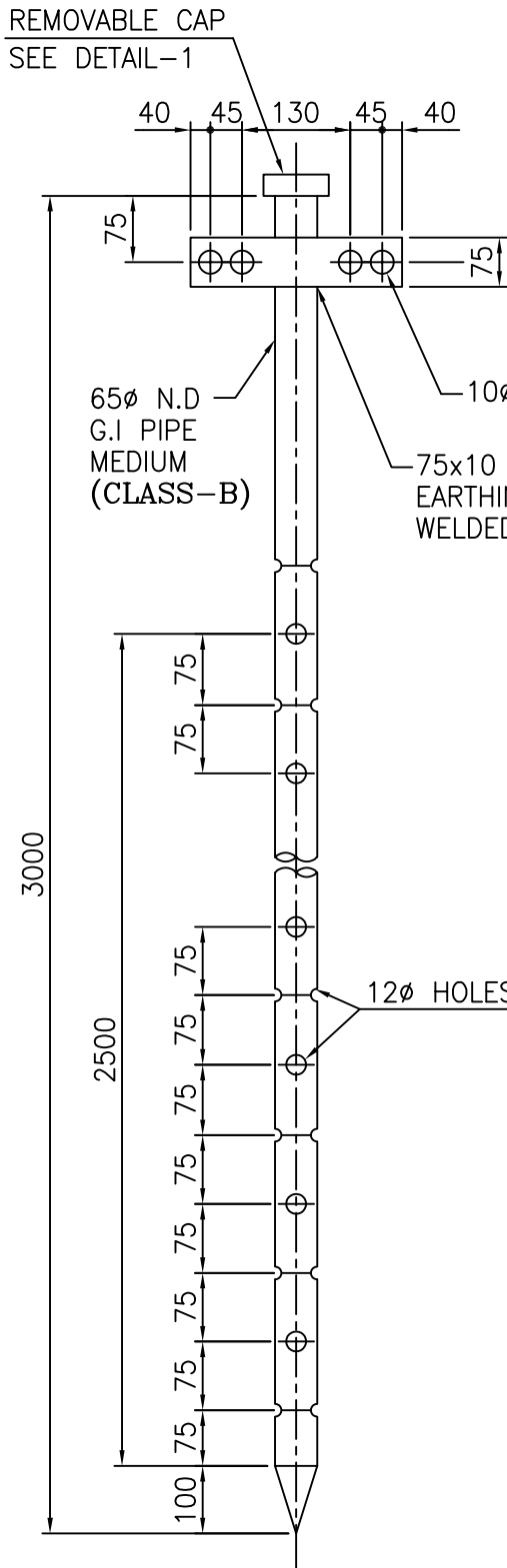
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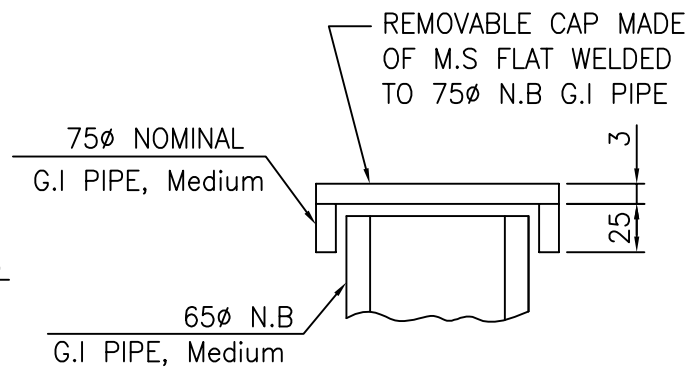
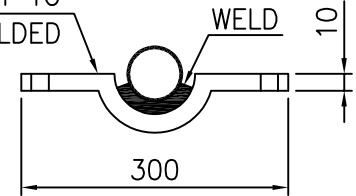
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PIPE ELECTRODE

M.S PLATE BENT TO
SHAPE AND WELDED



DETAIL-1

NOTE:-

1. PIPE ASSEMBLY SHALL BE HOT DIP GALVANISED AFTER FABRICATION (THICKNESS OF Zn = min 75 MICRONS)
2. AS PER IS:3043 (LATEST REVISION)
3. FUNNEL WITH WIRE MESH SHALL ALSO BE FURNISHED

FIG-1

For: STRUCTURE INDIA





PRODUCT STANDARD

HYDERABAD-32

PROJECT ENGINEERING & SYSTEMS DIVISION

PY55002

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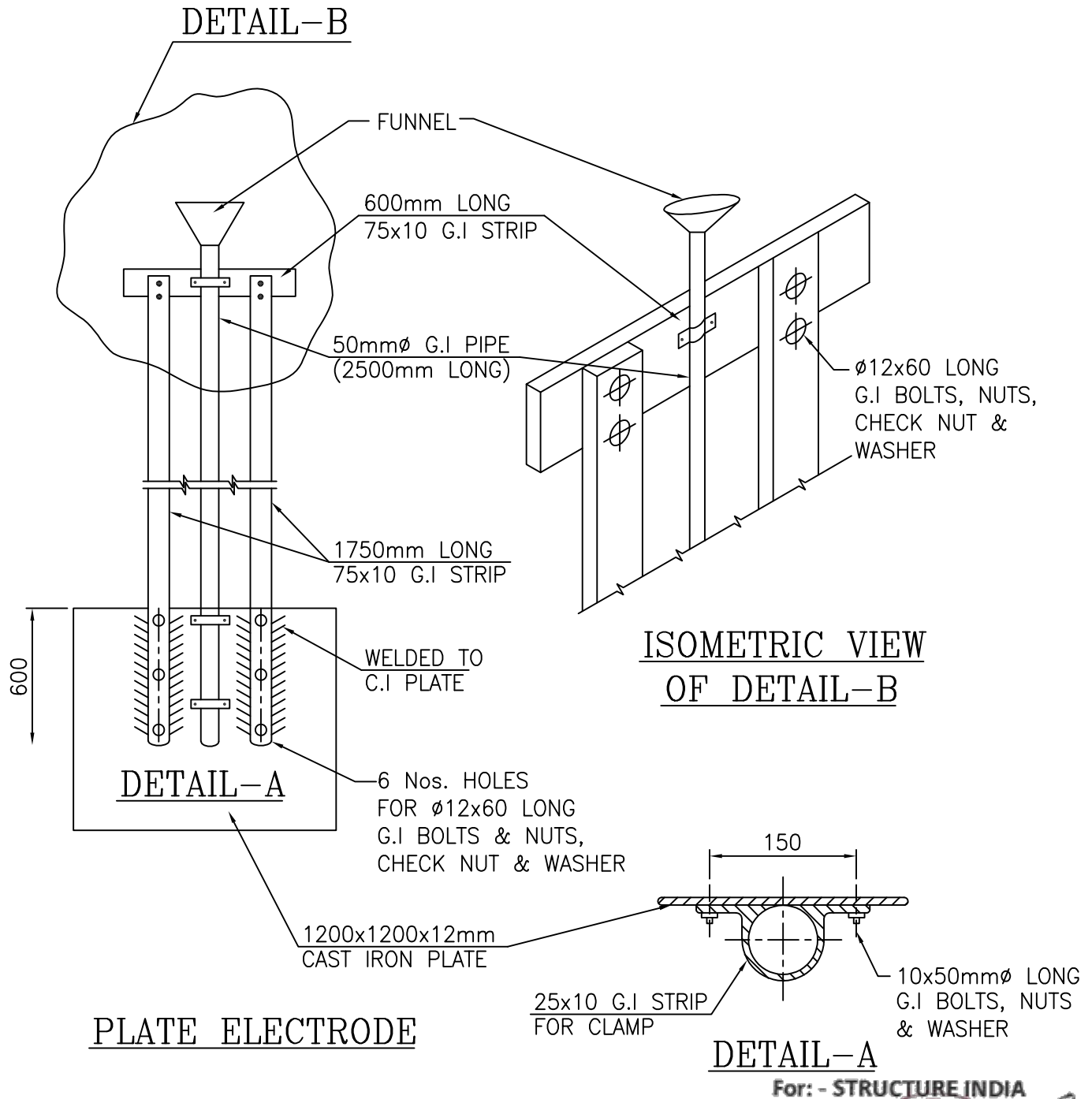


FIG-2

NOTE:-

FOR HOT DIP GALVANISATION, THE
THICKNESS OF Zn SHALL BE
75 MICRONS

NOTE:-

FUNNEL WITH WIRE MESH AND
REMOVABLE CAP AS PER DETAIL-1
OF FIG.-1 SHALL BE PROVIDED
WITH EACH ELECTRODE.





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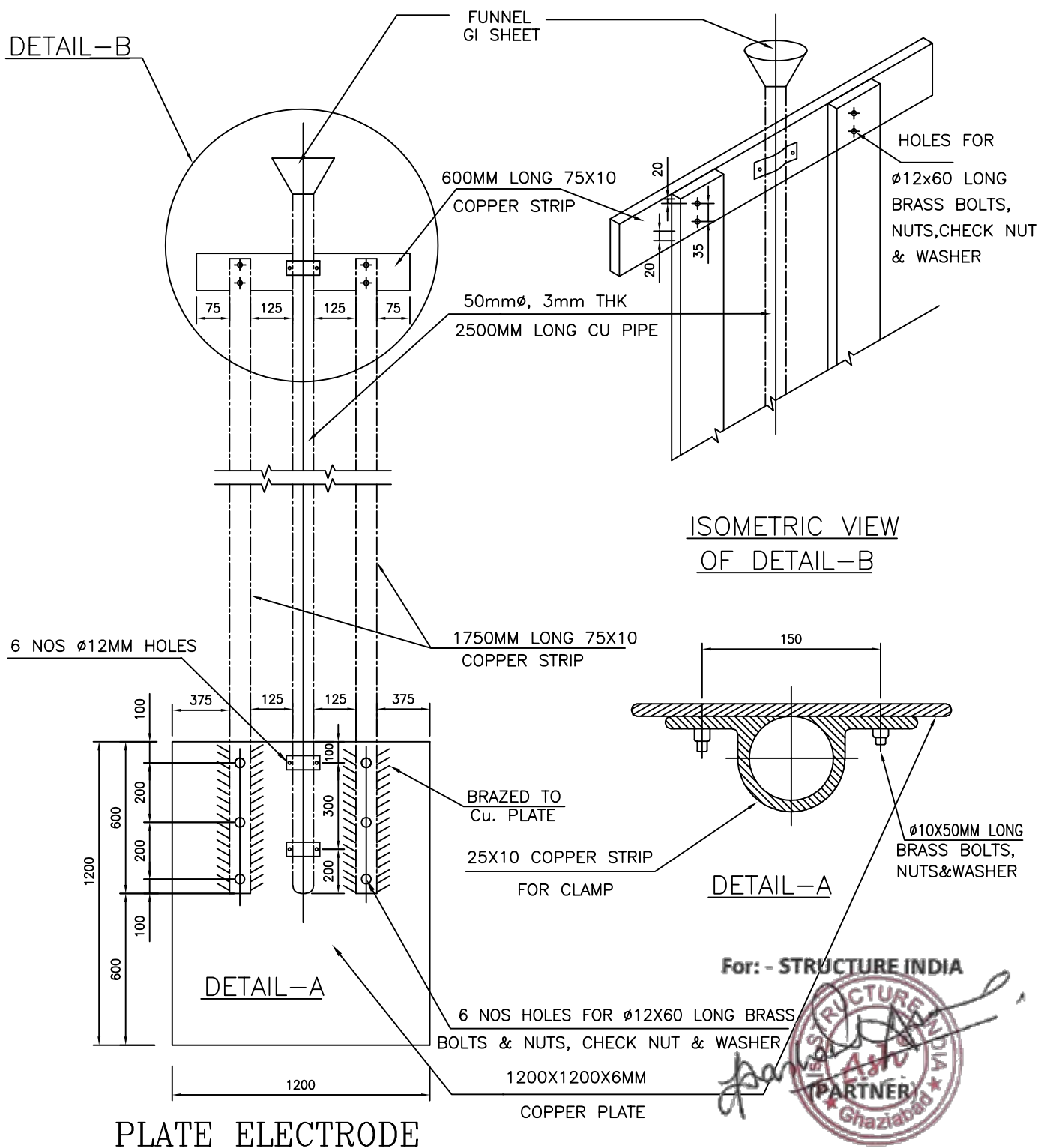


PLATE ELECTRODE

FIG-3

NOTE:-

FUNNEL WITH WIRE MESH AND REMOVABLE CAP AS PER DETAIL-1 OF FIG.-1 SHALL BE PROVIDED WITH EACH ELECTRODE.



PRODUCT STANDARD
HYDERABAD-32
PROJECT ENGINEERING & SYSTEMS DIVISION

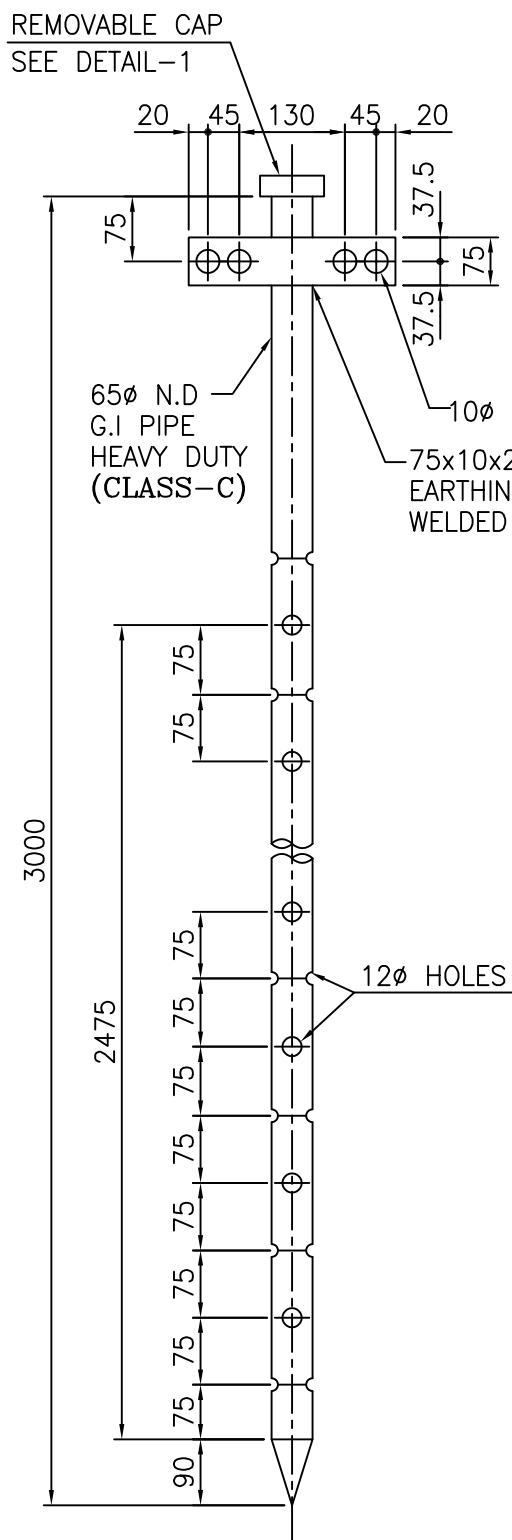
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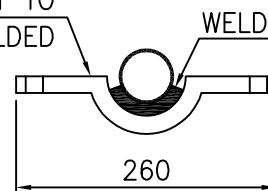


PIPE ELECTRODE

For: - STRUCTURE INDIA



M.S PLATE BENT TO
SHAPE AND WELDED



100ø NOMINAL
G.I PIPE

65ø N.B
G.I PIPE

REMOVABLE CAP MADE
OF M.S FLAT WELDED
TO 100ø N.B G.I PIPE

DETAIL-1

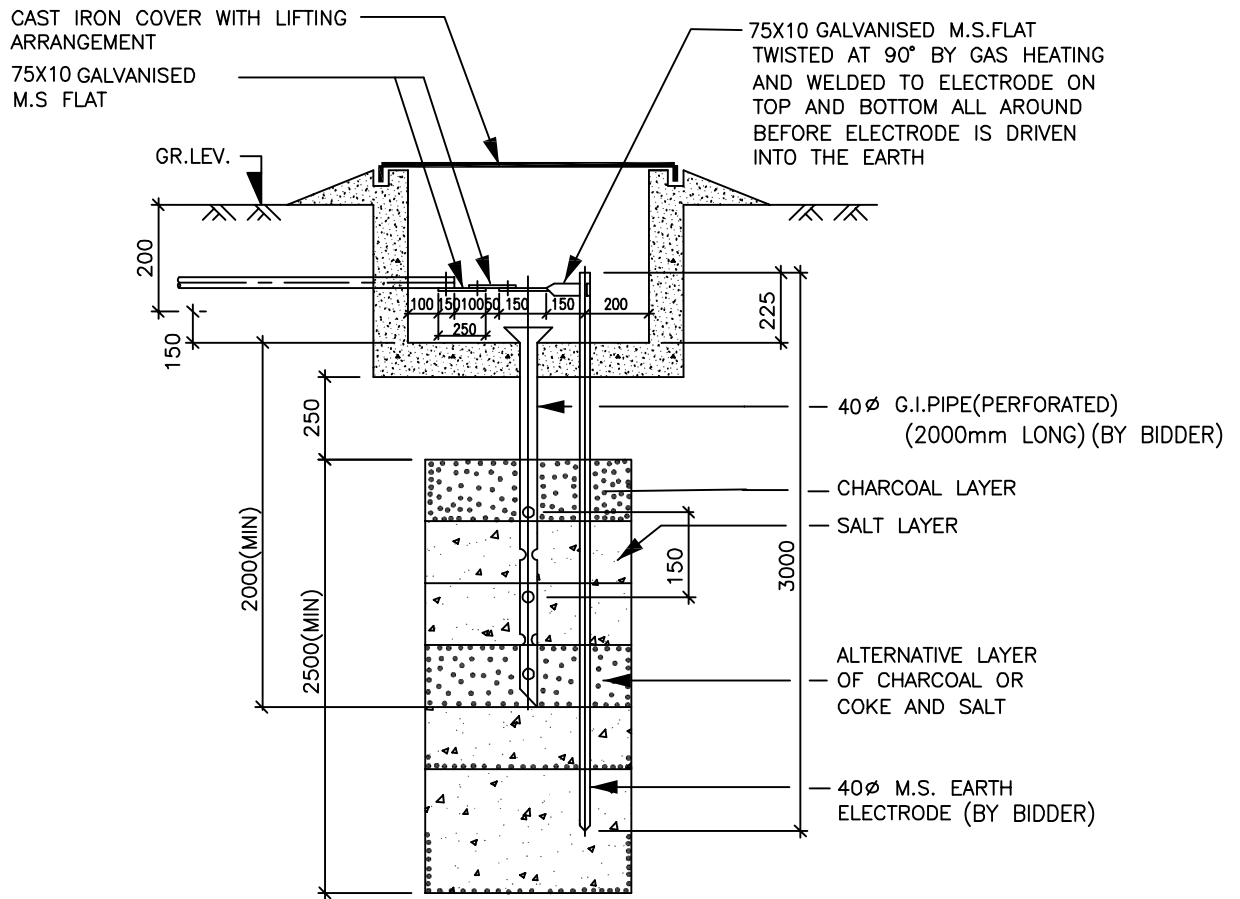
NOTE:-

1. PIPE ASSEMBLY SHALL BE HOT DIP GALVANISED AFTER FABRICATION (THICKNESS OF Zn = min 75 MICRONS)
2. AS PER IS:3043 (LATEST REVISION)
3. FUNNEL WITH WIRE MESH SHALL ALSO BE FURNISHED.

FIG-4

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TYPICAL ARRANGEMENT FOR MS ROD ELECTRODE



NOTES:

1. ALL DIMENSIONS ARE IN MM.
2. ALL WELDED JOINTS SHALL BE COVERED WITH 2mm THICK BETUMEN COMPOUND.

FIG-5

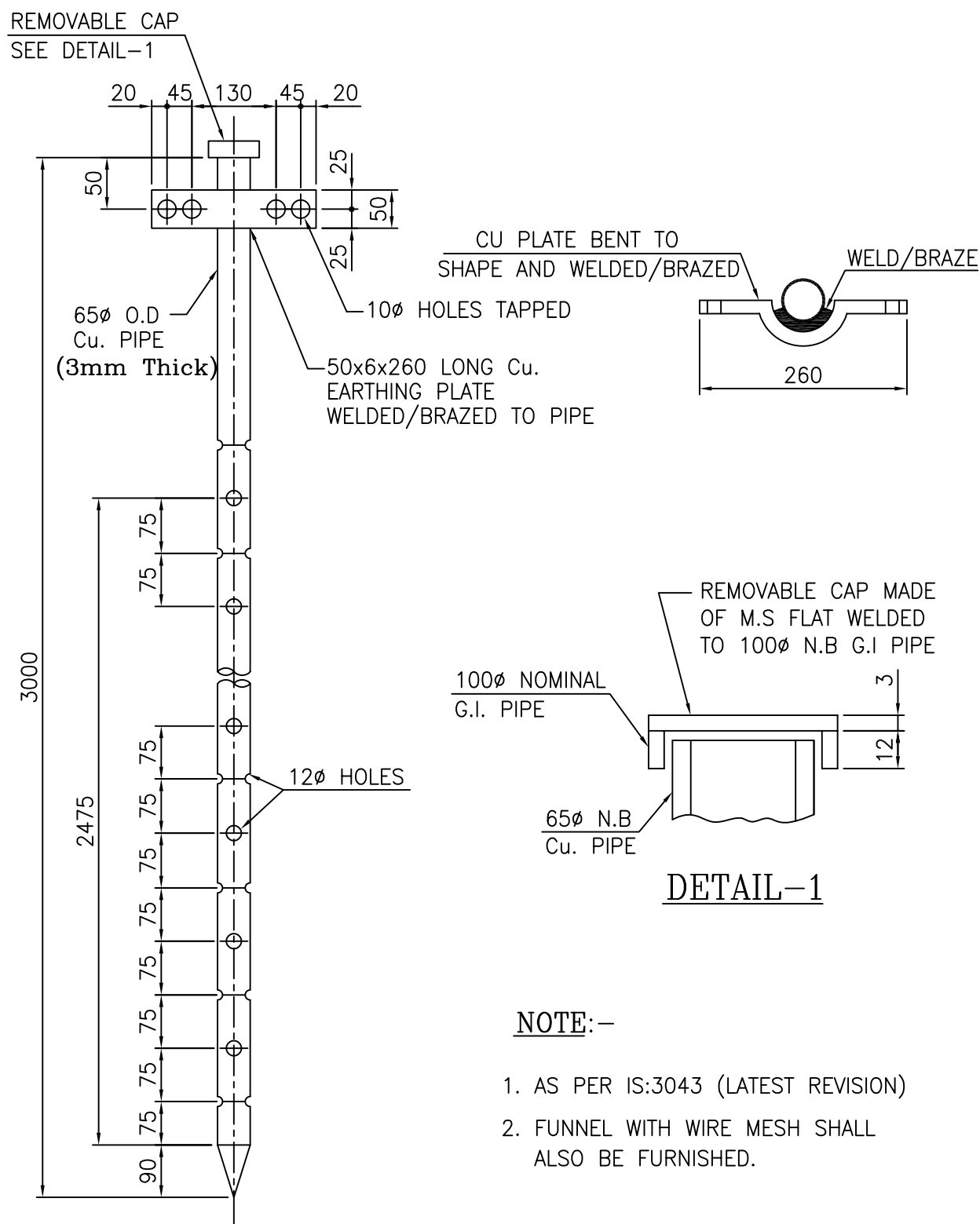
For: - STRUCTURE INDIA


 PARTNER
 Ghaziabad

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Ref. Doc.



Cu. PIPE ELECTRODE

FIG-6

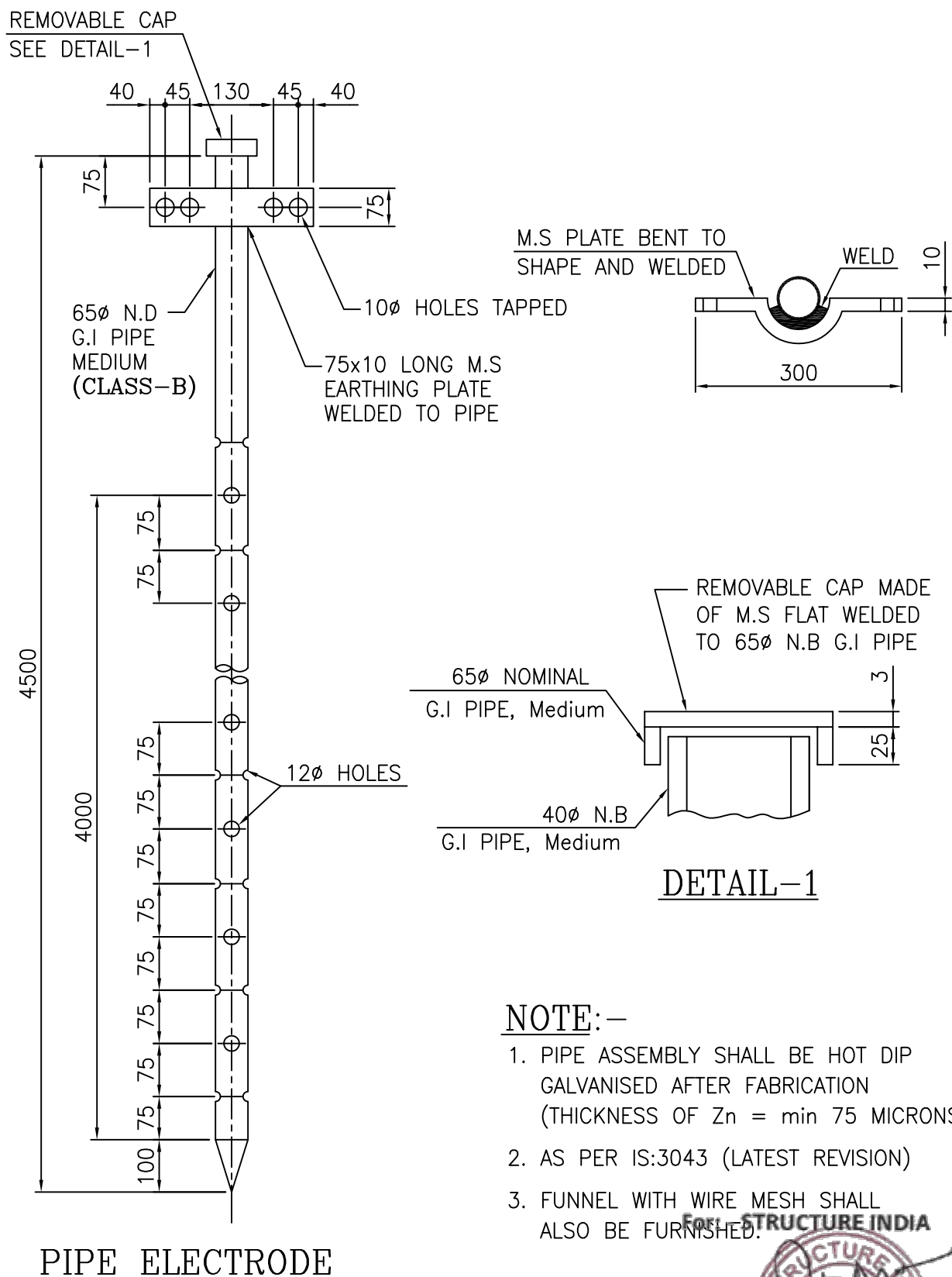
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NOTE:—

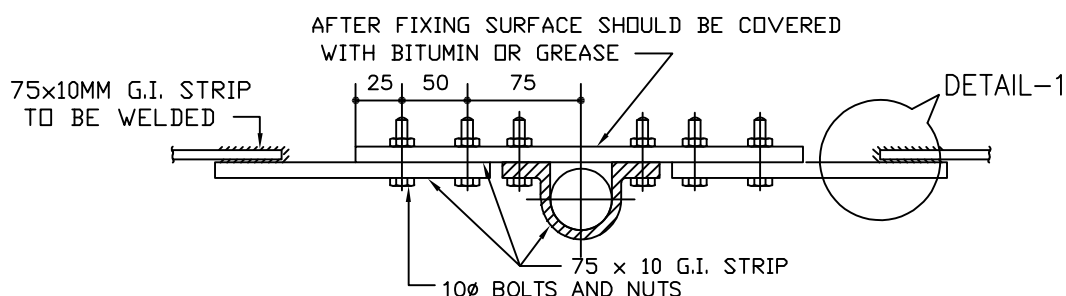
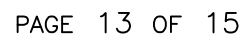
1. PIPE ASSEMBLY SHALL BE HOT DIP GALVANISED AFTER FABRICATION (THICKNESS OF Zn = min 75 MICRONS)
2. AS PER IS:3043 (LATEST REVISION)
3. FUNNEL WITH WIRE MESH SHALL ALSO BE FURNISHED.

For: **STRUCTURE INDIA**
FURNISHED.

Handwritten signature

STRUCTURE INDIA
PARTNER
Ghaziabad

FIG-7



NOTE:—

1. PIPE ASSEMBLY SHALL BE HOT DIP GALVANISED AFTER FABRICATION (THICKNESS OF Zn = min 75 MICRONS)
2. AS PER IS:3043 (LATEST REVISION)
3. FUNNEL WITH WIRE MESH SHALL ALSO BE FURNISHED.

SECTION - (I)

For: - STRUCTURE INDIA

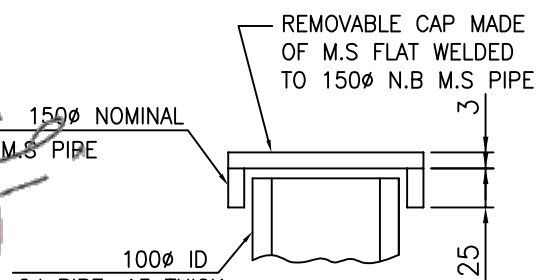
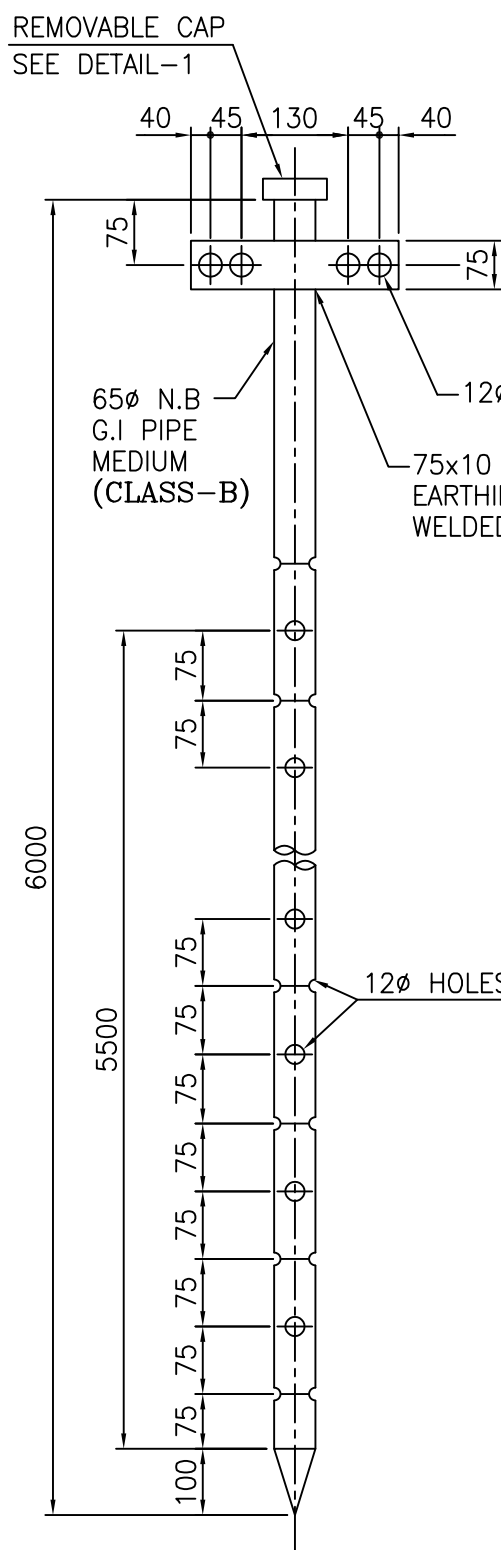
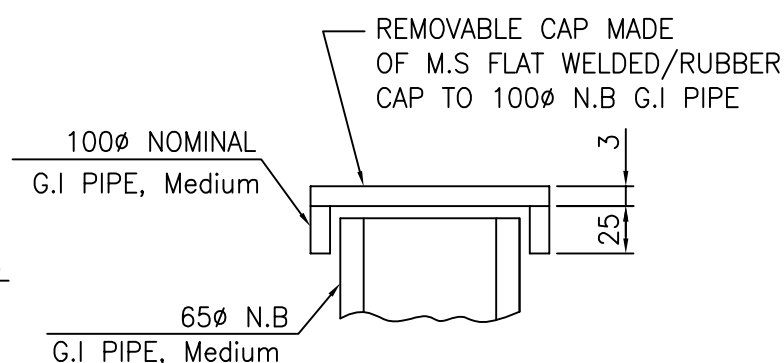
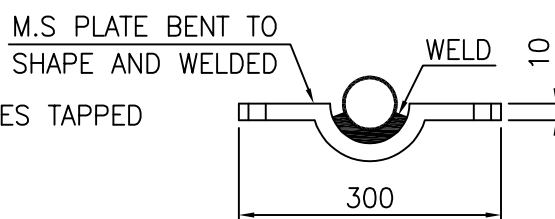


FIG-8

DETAIL-2



PIPE ELECTRODE



DETAIL-1

NOTE:-

1. PIPE ASSEMBLY SHALL BE HOT DIP GALVANISED AFTER FABRICATION (THICKNESS OF Zn = min 75 MICRONS)
2. AS PER IS:3043 (LATEST REVISION)
3. FUNNEL WITH WIRE MESH SHALL ALSO BE SUPPLIED.

For: - STRUCTURE INDIA



FIG-9

FUNNEL WITH WIRE MESH AND
REMOVABLE CAP AS PER DETAIL-1
SHALL BE PROVIDED WITH EACH
ELECTRODE.

TD-201 Rev No. 00	Form No.		PRODUCT STANDARD HYDERABAD PROJECT ENGINEERING & SYSTEMS DIVISION		PY55003
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					Page 1 of 6

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Technical Specification for Vertical Air Termination Rod (G.I)

1.0 SCOPE

Manufacture, Assembly, Testing at vendor's works and supply of Vertical Air Termination Rod (GI), to the Site.

2.0 APPLICABLE STANDARDS

IS: 3043 (Latest revisions & amendments are applicable).

3.0 BHEL MATERIAL CODIFICATION:

Var. No.	Description of Material	BHEL Material Code
01	Vertical air Termination Rod (GI) as per Enclosed Drawing.	PY9755003010

4.0 TESTS

Following tests will be conducted in presence of purchaser/purchaser representative:

Inspection of dimensions, finish surface defects, thickness & uniformity of Zinc coating ,adhesion test as per provisions of IS2062, 2629, 2633 as applicable on the date of enquiry.

Test certificates for the same shall be furnished, establishing the suitability of material, In 6 sets for our records within one week after the inspection.

Test certificate for chemical & physical properties of Raw materials i.e Steel Flats/Rods shall be tested as per IS-2062 from NABL approved lab/government approved laboratory and same shall be made available by vendor at the time of inspection.

For: - STRUCTURE INDIA



Ref. Doc	Revisions : Refer to record of revisions :	Prepared : Sd/- G.Sehu kiran	Approved : Sd/- JK Pattanaik	Date : 27/04/13
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Form No.		PRODUCT STANDARD HYDERABAD PROJECT ENGINEERING & SYSTEMS DIVISION		PY55003												
				Rev No. 02												
				Page 2 of 6												
COPYRIGHT AND CONFIDENTIAL The information on this document is the property of BHARAT HEAVY ELECTRICALS LIMITED . It must not be used directly or indirectly in any way detrimental to the interest of the company. 5.0 STANDARD FORMATS: (a) CHECK LIST FOR BIDDER: (TO BE FILLED BY BIDDER AND SUBMITTED ALONG WITH TECHNICAL OFFER) Enquiry No. Date : Name of the Bidder : Project : Specification No : PY55003, Rev-02 Item : Vertical Air Termination Rod (G.I) <table border="1" style="width: 100%;"> <thead> <tr> <th style="width: 10%;">Sl. No.</th> <th style="width: 60%;">Check point description</th> <th style="width: 30%;">Bidder Compliance</th> </tr> </thead> <tbody> <tr> <td>1.</td> <td>Duly signed Deviation Schedule(Technical) enclosed</td> <td>Yes/No</td> </tr> <tr> <td>2.</td> <td>Signed & stamped unpriced price format enclosed</td> <td>Yes/No</td> </tr> <tr> <td>3.</td> <td>Duly signed & stamped Technical Specification</td> <td>Yes/No</td> </tr> </tbody> </table> Note: Bidder shall strictly fill up the check list as applicable and submit along with the offer. No deviation is acceptable in this regard. Without duly signed & stamped checklist, offer shall not be considered for evaluation. ----- BIDDER'S STAMP & SIGNATURE For: - STRUCTURE INDIA 					Sl. No.	Check point description	Bidder Compliance	1.	Duly signed Deviation Schedule(Technical) enclosed	Yes/No	2.	Signed & stamped unpriced price format enclosed	Yes/No	3.	Duly signed & stamped Technical Specification	Yes/No
Sl. No.	Check point description	Bidder Compliance														
1.	Duly signed Deviation Schedule(Technical) enclosed	Yes/No														
2.	Signed & stamped unpriced price format enclosed	Yes/No														
3.	Duly signed & stamped Technical Specification	Yes/No														
Ref. Doc																

Form No.		PRODUCT STANDARD HYDERABAD PROJECT ENGINEERING & SYSTEMS DIVISION	PY55003																		
			Rev No. 02																		
			Page 3 of 6																		
Ref. Doc	(b) DEVIATION SCHEDULE (TECHNICAL) Enquiry No. Date : Name of the Bidder : Project : Specification No : PY55003, Rev-02 Item : Vertical Air Termination Rod (G.I) <table border="1"> <thead> <tr> <th>Sl. No.</th> <th>Clause.no. & Spec.no</th> <th>Description as per specification</th> <th>Deviation taken</th> <th>Nature of Deviation</th> <th>Remarks</th> </tr> </thead> <tbody> <tr> <td> </td> <td> </td> <td> </td> <td> </td> <td> </td> <td> </td> </tr> <tr> <td> </td> <td> </td> <td> </td> <td> </td> <td> </td> <td> </td> </tr> </tbody> </table> NOTES 1. Deviation to tender documents, if any, shall be indicated only in this schedule. 2. Deviations, if any, shall be clearly brought out only in this format. Deviations mentioned / taken elsewhere or in any other format will be ignored. 3. The vendor, if necessary can attach additional sheets in the same format. 4. Nature of Deviations shall only be of Design / Manufacturing constraints and non-availability of items / components / makes in market. 5. No price implications shall be entertained for deviations withdrawn during the technical scrutiny. If any deviations are accepted by BHEL during technical scrutiny then also there will be no price implication. Hence, in no case there will be consideration of Price implications. 6. Reasons for the deviations shall be specified in the Remarks column. 7. If there are no deviations from the specifications, bidder still has to submit the Deviation Schedule by writing “NO Deviations” in this format. 8. If the “Deviation Schedule” is not submitted along with the offer, the bidder’s offer is likely to be rejected without any further interaction with the bidder. 9. Only the accepted deviations in conjunction with the original tender shall constitute the contract document for the award of job to the bidder. (Signature of the Bidder with Seal) For: - STRUCTURE INDIA 			Sl. No.	Clause.no. & Spec.no	Description as per specification	Deviation taken	Nature of Deviation	Remarks												
	Sl. No.	Clause.no. & Spec.no	Description as per specification	Deviation taken	Nature of Deviation	Remarks															

Ref. Doc	Form No.		PRODUCT STANDARD HYDERABAD PROJECT ENGINEERING & SYSTEMS DIVISION		PY55003																
					Rev No. 02																
					Page 4 of 6																
6.0 PACKAGE EXECUTION SCHEDULE <table border="1"> <thead> <tr> <th rowspan="2">Sl. No.</th> <th rowspan="2">Event</th> <th>Schedule</th> </tr> <tr> <th>Vendor Drawings</th> </tr> </thead> <tbody> <tr> <td>1</td> <td>Drawings/Data Sheet</td> <td>Within 1 week from P.O. date</td> </tr> <tr> <td>2</td> <td>BHEL Comments</td> <td>Within 1 week from receipt of the "Drawings in line with Specification"</td> </tr> <tr> <td>3</td> <td>Revised Drawings submission</td> <td>Within 1 week from BHEL's comments date</td> </tr> <tr> <td>4</td> <td>BHEL Comments / Approval for Manufacture Clearance</td> <td>Within 1 week from receipt of the revised Drawings</td> </tr> </tbody> </table> However, it is vendor responsibility to ensure the cycle time reduction for the submission of drawing.						Sl. No.	Event	Schedule	Vendor Drawings	1	Drawings/Data Sheet	Within 1 week from P.O. date	2	BHEL Comments	Within 1 week from receipt of the "Drawings in line with Specification"	3	Revised Drawings submission	Within 1 week from BHEL's comments date	4	BHEL Comments / Approval for Manufacture Clearance	Within 1 week from receipt of the revised Drawings
Sl. No.	Event	Schedule																			
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PRODUCT STANDARD

HYDERABAD

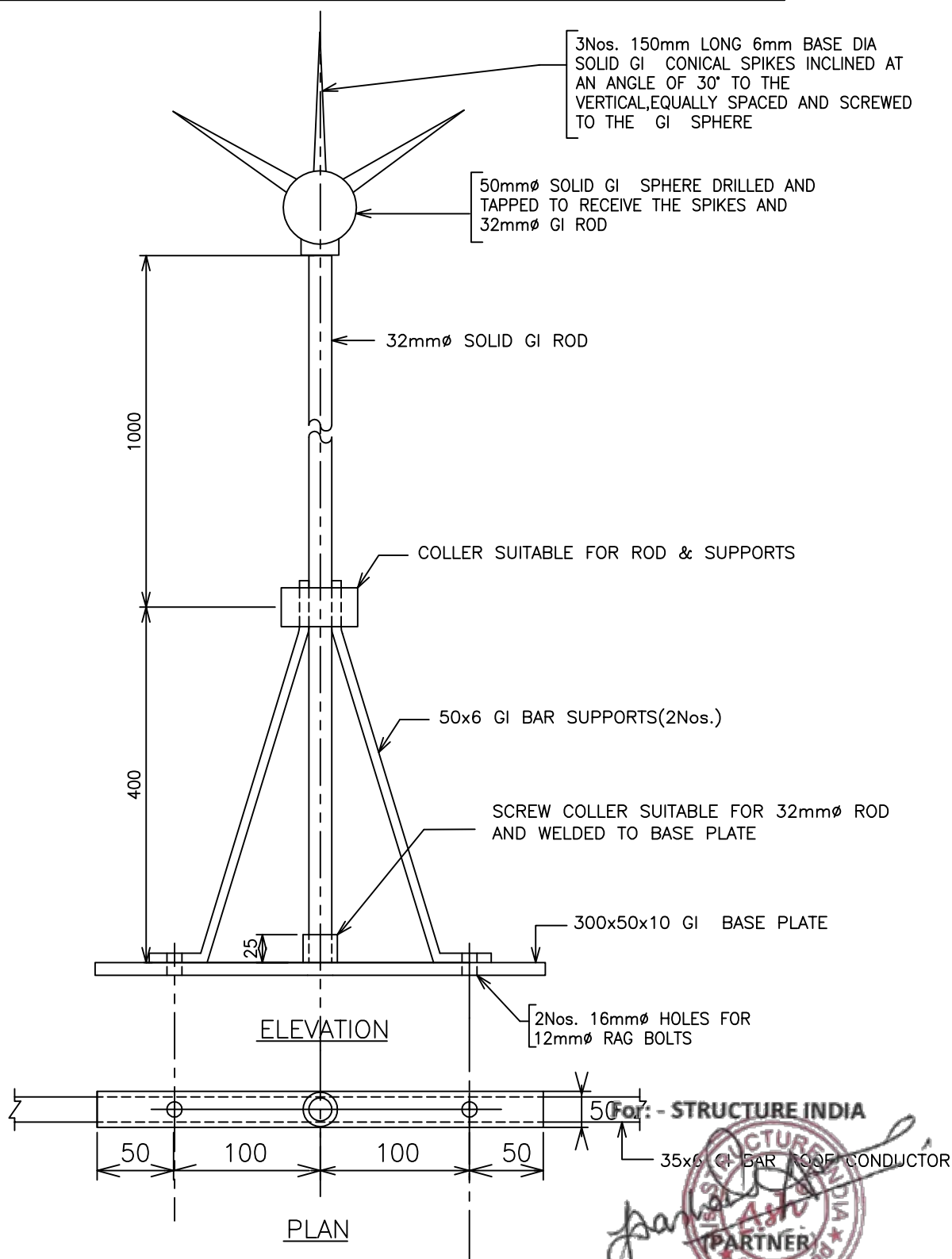
PROJECT ENGINEERING & SYSTEMS DIVISION

PY55003

Rev. No. 02

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TYPICAL ARRANGEMENT FOR VERTICAL AIR TERMINATION ROD.



NOTES

FIG 1

1. ALL DIMENSIONS ARE IN mm.
2. AIR TERMINATION ROD SHALL BE MECHANICALLY AND ELECTRICALLY CONNECTED TO ROOF CONDUCTORS.
3. ALL THE ABOVE MENTIONED BILL OF MATERIALS SHALL BE SUPPLIED BY THE BIDDER.

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					Rev No. 02
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RECORD OF REVISIONS					
COPYRIGHT AND CONFIDENTIAL The information on this document is the property of BHARAT HEAVY ELECTRICALS LIMITED, It must not be used directly or indirectly in any way detrimental to the interest of the company.	Rev. No.	Date	Revision Details	Revised By	Approved By
	00	27-04-2013	Original Issue	Sd/-	Sd/- JKPattanaik
	01	26-07-2019	Cl.5 & 6 are added.	Sd/- A V Suresh	Sd/- P Suresh
	02	16-08-2019	Sheet .5 of 6 is added.	<i>A V Suresh</i> A V Suresh	<i>P Suresh</i> P Suresh
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For: - STRUCTURE INDIA

[Signature]
 PARTNER
 Ghaziabad

ADDENDUM TO TECHNICAL SPECIFICATION

PROJECT : 3x150MW BTG UNITS-7,8&9 HINDALCO, LAPANGA

ITEM : EARTHING MATERIAL

Following is the addendum regarding QUALITY requirements:

1. Only type test certificate of same design and same Material of Construction of equipment to be submitted, wherever required.
2. BHEL's Engineering reviewed Type Test Report is to be furnished to BHEL/ BHEL's TPIA during inspection.
3. The reviewed and certified documents by BHEL/TPIA/Customer shall be submitted (QAP cl no wise with page nos.) to BHEL as documentation package along with TC review format.

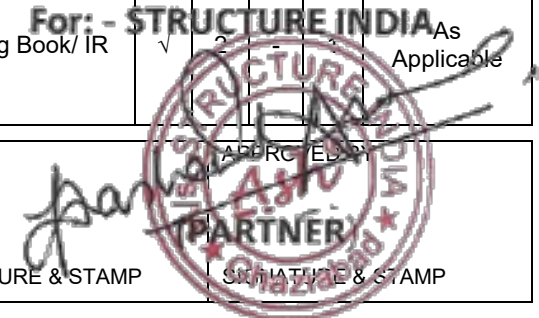
For: - STRUCTURE INDIA

A handwritten signature in black ink is written over a circular red stamp. The stamp contains the text "STRUCTURE INDIA" at the top, "PARTNER" in the center, and "Ghaziabad" at the bottom, flanked by two stars.

VENDOR'S NAME & ADDRESS:		MANUFACTURING QUALITY PLAN							QP. NO.: PESD/QA/EP/0006				
		CUSTOMER: BHEL PROJECT: PRODUCT: Earthing Material / GI Wire / MS Rod / GI Vertical air Termination Rod/ Earth Electrode				BHEL P.O.NO.: P.O.DATE: BHEL SPEC:			REV:	REV NO:	DATE: 07.01.2025		
		PAGE 1 OF 4											
SL NO	COMPONENTS	CHARACTERISTICS	CLASS	TYPE OF CHECK	QUANTUM OF CHECK	REFERENCE DOCUMENT	ACCEPTANCE NORMS	FORMAT OF RECORD	* D	AGENCY P W V			REMARKS

1.0	RAW MATERIALS & BOUGHT OUT ITEMS												
	RAW MATERIALS ROLL SECTIONS	CHEMICAL ANALYSIS	MAJOR	CHEMICAL	Minimum one per lot/Size/type	As per BHEL App drg/data sheet/spec	As per BHEL App drg/data sheet/spec	Lab report	√	2	-	1	
		MECHANICAL PROPERTIES	MAJOR	MECHANICAL	Minimum one per lot/Size/type	As per BHEL App drg/data sheet/spec	As per BHEL App drg/data sheet/spec	-do-	√	2	-	1	
		SURFACE FINISH	MAJOR	MECHANICAL	Minimum one per lot/Size/type	As per BHEL App drg/data sheet/spec	As per BHEL App drg/data sheet/spec	-do-	√	2	-	1	
		DIMMENSION	MAJOR	MECHANICAL	10%	As per BHEL App drg/data sheet/spec	As per BHEL App drg/data sheet/spec	-do-	√	2	-	1	
	ZINC	CHEMICAL ANALYSIS	MAJOR	CHEMICAL	5%	IS-209	IS-209	-do-	√	2	-	1	
2.0	INPROCESS INSPECTION												
	INPROCESS INSPECTION OF STRIPS, WIRE, MS ROD AND VERTICAL AIR TERMINATION ROD, EARTH ELECTRODE	VISUAL CHECK	MAJOR	VISUAL	100%	As per BHEL App drg/data sheet/spec	As per BHEL App drg/data sheet/spec	Log Book/ IR	√	2	-	1	
		DIMENSIONAL CHECK	MAJOR	MANUAL	100%	As per BHEL App drg/data sheet/spec	As per BHEL App drg/data sheet/spec	Log Book/ IR	√	2	-	1	
		HOT DIP GALVANIZATION	MAJOR	VISUAL	100%	As per BHEL App drg/data sheet/spec	As per BHEL App drg/data sheet/spec	Log Book/ IR	√	2	-	1	

LEGEND: P: PERFORM, W: WITNESS, V: TEST CERTIFICAT REVIEW. INDICATE 1 FOR BHEL CQS /BHEL NOMINATED INSPECTION AGENCY/END USER/END USER'S REPRESENTATIVE & 2 FOR VENDOR/SUB VENDOR AS APPROPRIATE AGAINST EACH COMPONENT /CHARACTERISTIC UNDER P, W & V COLUMNS. * FOR ITEMS MARKED ✓ (TICK) IN COLUMN 'D', TEST CERTIFICATES SHALL BE SUBMITTED TO BHEL FOR RECORDS.	PREPARED BY	ENDORSED BY
	BHEL QA SIGNATURE & STAMP	VENDOR'S SIGNATURE & STAMP



VENDOR'S NAME & ADDRESS:		MANUFACTURING QUALITY PLAN							QP. NO.: PESD/QA/EP/0006				
		CUSTOMER: BHEL PROJECT: PRODUCT: Earthing Material / GI Wire / MS Rod / GI Vertical air Termination Rod/ Earth Electrode				BHEL P.O.NO.: P.O.DATE: BHEL SPEC:			REV:	REV NO:	DATE: 07.01.2025		
										PAGE 2 OF 4			
SL NO	COMPONENTS	CHARACTERISTICS	CLASS	TYPE OF CHECK	QUANTUM OF CHECK	REFERENCE DOCUMENT	ACCEPTANCE NORMS	FORMAT OF RECORD	* D	AGENCY P W V			REMARKS

3.0	FINAL INSPECTION & TESTING												
3.1	FINAL INSPECTION OF STRIPS, MS ROD AND VERTICAL AIR TERMINATION ROD, EARTH ELECTRODE	UNIFORMITY OF ZINC COATING	CRITICAL	CHEMICAL	AS PER IS-4759	As per BHEL App drg/data sheet/spec	As per BHEL App drg/data sheet/spec	TC	√	2	1	1	As Applicable
		MASS & THICKNESS OF ZINC COATING	CRITICAL	MECHANICAL	AS PER IS-4759	As per BHEL App drg/data sheet/spec	As per BHEL App drg/data sheet/spec	TC	√	2	1	1	As Applicable
		ADHESION & DFT TEST	CRITICAL	MECHANICAL	AS PER IS-4759	As per BHEL App drg/data sheet/spec	As per BHEL App drg/data sheet/spec	TC	√	2	1	1	As Applicable
		DIMENSIONAL CHECK	CRITICAL	MECHANICAL	AS PER IS-4759	As per BHEL App drg/data sheet/spec	As per BHEL App drg/data sheet/spec	Report	√	2	1	1	
		VISUAL CHECK	CRITICAL	VISUAL	AS PER IS-4759	As per BHEL App drg/data sheet/spec	As per BHEL App drg/data sheet/spec	Report	√	2	1	1	
	FINAL INSPECTION OF WIRE	MASS OF ZINC COATING	CRITICAL	MECHANICAL	AS PER IS 4826:2023	As per BHEL App drg/data sheet/spec	As per BHEL App drg/data sheet/spec	TC	√	2	1	1	As Applicable
		UNIFORMITY OF ZINC COATING	CRITICAL	CHEMICAL	AS PER IS 4826:2023	As per BHEL App drg/data sheet/spec	As per BHEL App drg/data sheet/spec	TC	√	2	1	1	No lump should be available
		ADHESION TEST	CRITICAL	MECHANICAL	AS PER IS 4826:2023	As per BHEL App drg/data sheet/spec	As per BHEL App drg/data sheet/spec	TC	√	2	1	1	As Applicable
		DIMENSIONAL CHECK	CRITICAL	MECHANICAL	AS PER IS 4826:2023	As per BHEL App drg/data sheet/spec	As per BHEL App drg/data sheet/spec	Report	√	2	1	1	

LEGEND: P: PERFORM, W: WITNESS, V: TEST CERTIFICATE REVIEW. INDICATE 1 FOR BHEL CQS /BHEL NOMINATED INSPECTION AGENCY/END USER/END USER'S REPRESENTATIVE & 2 FOR VENDOR/SUB VENDOR AS APPROPRIATE AGAINST EACH COMPONENT /CHARACTERISTIC UNDER P, W & V COLUMNS. * FOR ITEMS MARKED ✓ (TICK) IN COLUMN 'D', TEST CERTIFICATES SHALL BE SUBMITTED TO BHEL FOR RECORDS.	PREPARED BY	ENDORSED BY	APPROVED BY
	BHEL QA SIGNATURE & STAMP	VENDOR'S SIGNATURE & STAMP	SIGNATURE & STAMP

VENDOR'S NAME & ADDRESS:			MANUFACTURING QUALITY PLAN							QP. NO.: PESD/QA/EP/0006			
			CUSTOMER: BHEL PROJECT: PRODUCT: Earthing Material / GI Wire / MS Rod / GI Vertical air Termination Rod/ Earth Electrode				BHEL P.O.NO.: P.O.DATE: BHEL SPEC: REV:			REV NO:		DATE: 07.01.2025	
										PAGE 4 OF 4			
SL NO	COMPONENTS	CHARACTERISTICS	CLASS	TYPE OF CHECK	QUANTUM OF CHECK	REFERENCE DOCUMENT	ACCEPTANCE NORMS	FORMAT OF RECORD	* D	AGENCY			REMARKS
										P	W	V	

COC - Certificate of Compliance

For: - STRUCTURE INDIA



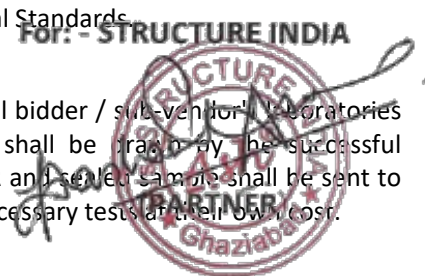
LEGEND: P: PERFORM, W: WITNESS, V: TEST CERTIFICATE REVIEW. INDICATE 1 FOR BHEL CQS /BHEL NOMINATED INSPECTION AGENCY/END USER/END USER'S REPRESENTATIVE & 2 FOR VENDOR/SUB VENDOR AS APPROPRIATE AGAINST EACH COMPONENT /CHARACTERISTIC UNDER P, W & V COLUMNS. * FOR ITEMS MARKED ✓ (TICK) IN COLUMN 'D', TEST CERTIFICATES SHALL BE SUBMITTED TO BHEL FOR RECORDS	PREPARED BY BHEL QA SIGNATURE & STAMP	ENDORSED BY VENDOR'S SIGNATURE & STAMP	APPROVED BY SIGNATURE & STAMP
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COPYRIGHT AND CONFIDENTIAL The information on this document is the property of BHARAT HEAVY ELECTRICALS LIMITED, It must not be used directly or indirectly in any way detrimental to the interest of the company.		Quality Assurance & Inspection Requirement for BOP Items(s)/Packages For: - STRUCTURE INDIA 				
Ref. Doc		Revisions: Refer to record of revisions :	Prepared: -Sd- (Kranthi Kumar)	Checked: -Sd- (Mohan Krishna)	Approved: -Sd- (K. Ravi Kumar)	Date: 26.03.26

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<u>INDEX</u>																																		
<table border="1" style="width: 100%; border-collapse: collapse;"> <thead> <tr> <th style="width: 10%;">Sl. No.</th> <th style="width: 60%;">Description</th> <th style="width: 30%;">Pg No.</th> </tr> </thead> <tbody> <tr> <td style="text-align: center;">1.</td> <td>General</td> <td style="text-align: center;">3</td> </tr> <tr> <td style="text-align: center;">2.</td> <td>Quality Systems Requirement</td> <td style="text-align: center;">3</td> </tr> <tr> <td style="text-align: center;">3.</td> <td>Quality Assurance Plan</td> <td style="text-align: center;">3</td> </tr> <tr> <td style="text-align: center;">4.</td> <td>Calibration of Measuring Equipment</td> <td style="text-align: center;">3</td> </tr> <tr> <td style="text-align: center;">5.</td> <td>Test Certificates & Documents</td> <td style="text-align: center;">3</td> </tr> <tr> <td style="text-align: center;">6.</td> <td>Internal Inspection by Vendor</td> <td style="text-align: center;">5</td> </tr> <tr> <td style="text-align: center;">7.</td> <td>Method of Inspection by BHEL /BHEL's TPIA and CUSTOMER</td> <td style="text-align: center;">5</td> </tr> <tr> <td style="text-align: center;">8.</td> <td>Final documentation</td> <td style="text-align: center;">5</td> </tr> <tr> <td style="text-align: center;">9.</td> <td>General clause</td> <td style="text-align: center;">6</td> </tr> </tbody> </table>					Sl. No.	Description	Pg No.	1.	General	3	2.	Quality Systems Requirement	3	3.	Quality Assurance Plan	3	4.	Calibration of Measuring Equipment	3	5.	Test Certificates & Documents	3	6.	Internal Inspection by Vendor	5	7.	Method of Inspection by BHEL /BHEL's TPIA and CUSTOMER	5	8.	Final documentation	5	9.	General clause	6
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<u>Annexures:</u> 1. Typical / Indicative /standard QAP(s) applicable equipment package 2. QAP guidelines and Formats 3. TC review format, clause wise documentation.																																		
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COPYRIGHT AND CONFIDENTIAL The information on this document is the property of BHARAT HEAVY ELECTRICALS LIMITED . It must not be used directly or indirectly in any way detrimental to the interest of the company.		1. General 1.1. Inspection & testing of package / equipment shall be carried out by BHEL /BHEL TPI /CUSTOMER /CUSTOMER's TPIA /CONSULTANT at the works of vendor during manufacturing and / or on final product to ensure conformity of the same with the acceptable criteria of technical specifications, approved drawings, manufacturing drawings, applicable national / international standards and as per approved QAP either or by BHEL /CUSTOMER/CONSULTANT. 2. Quality Systems Requirement 2.1 The vendor must recognize the importance of quality and follow quality assurance in all stages of manufacturing and quality control activities of the product. The successful bidder must define and implement the tasks and controls that will provide quality assurance, in case manufacturing of product is sub-contracted either partly or fully and/or for the procured components of the product. All bought-out equipment or component shall be procured from vendors which are duly approved by BHEL /CUSTOMER. 3. Quality Assurance Plan 3.1 The vendor shall furnish Quality Assurance Plan (QAP) for respective package/equipment after completion of detailed engineering and finalization of BOM/ equipment identification number for BHEL /CUSTOMER approval as per master document list (MDL) / Purchase Order. 3.2 QAP shall be prepared & submitted to BHEL /CUSTOMER approval either in BHEL format / CUSTOMER specific format as specified in separate document "QAP GUIDELINES & FORMAT". 3.3 Inspection and test requirements shall be decided with due consideration of factors like safety, duty cycle, operating conditions, equipment life, environmental conditions, place of installation and statutory regulations, as applicable, for a particular equipment/ package. 3.4 A typical /indicative /Generic /standard QAP provided in the tender document for respective equipment /package is a reference document for the vendor for future use by vendor for preparation and submission of QAP as detailed at (3.1). Hence, no deviation to such document is acceptable. 3.5 Any, additional type or special tests or routine tests if found necessary to establish the intended quality after detailed engineering then the same shall have to be incorporated in the QAP without any commercial implication. 4. Calibration of measuring equipment 4.1 All the measuring equipment used for inspection & testing shall be calibrated and appropriate accuracy class of measuring equipment shall be used. Calibration standards used for calibration of measuring equipment shall be traceable to national standards of National Physical Laboratory (NPL), New Delhi with unbroken chains of comparison. 4.2 Valid calibration certificate for all measuring equipment used during inspection and testing at manufacturer's works, with traceability to national standards of NPL / NABL accredited laboratories shall be furnished prior to undertaking inspection by BHEL /CUSTOMER. 4.3 Calibration certificate shall also indicate reference no. of calibration standards calibrated by NPL / NABL accredited laboratories and copies of such calibration certificates of calibration standards shall be included in the compiled dossiers of inspection/test results. 5. Test certificates and documents 5.1 For each of the items being manufactured as per approved QAP, following test certificates and		
	Ref. Doc			

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COPYRIGHT AND CONFIDENTIAL The information on this document is the property of BHARAT HEAVY ELECTRICALS LIMITED . It must not be used directly or indirectly in any way detrimental to the interest of the company.			documents, as applicable for each of the equipment, in requisite copies including original duly endorsed by the manufacturer/vendor appropriate linkage to project, purchase order and acceptance criteria etc shall be submitted to BHEL /CUSTOMER during inspection. If demanded, one set of such documents along with photographs shall be submitted to BHEL to ensure equipment's readiness for inspection. i. Raw materials identification & physical and chemical test certificates for all materials used in manufacture of the equipment. ii. Raw Material traceability from OEM to Supplier. iii. WPS, PQR & WPQ documents as per applicable code. iv. Details of stage-wise inspection & rectification records for fabricated items, castings, forgings and machined articles. v. Manufacturer's material and performance/relevant test certificates for all bought-out items. vi. Details of heat-treatment and stress relieving charts as per specification. vii. Non-Destructive Test reports as per respective code. viii. Hardness test certificate. ix. Pressure / Leakage Test Certificates. x. Performance Test Certificates for all characteristics. xi. FAT report, Loop check, over all assembly check including alignment check of assembly with job equipment, base frames, Integration /unitization tests etc. xii. Routine / Type / Calibration /Acceptance / Special tests (Type Tests etc) certificates for electrical/ power electronics/ automation/ instrumentation items as identified in QAP. Furnishing valid type test certificate for similar design of above items is mandatory until unless exemption is granted specifically in technical specification for any item. In case, type test certificate of similar design is not available, vendor shall organize to carry out such tests at his cost without time implication. xiii. Surface preparation and painting certificates. xiv. Certificates from competent authority for the items coming under statutory regulations (IBR/ FM/ UL/ CMRI/ Weights & Measures etc.) xv. Environmental test reports for electronics/ automation items as applicable. 5.2 Vendor shall necessarily submit the RMTCs for all major items /components along with material traceability. In case, where physical and chemical test certificates for minor /miscellaneous of items /components are not available, with prior approval from BHEL(Quality/Engg), the vendor shall arrange to have specimens and test samples of the materials, tested in his own laboratory having NABL accreditation or authorized NABL Lab at his cost and submit the copies of test results in requisite numbers to BHEL/CUSTOMER for review. Number of test samples against each heat/cast/lot or batch of materials, as applicable shall be as per relevant Indian or International Standards.	
Ref. Doc			5.3 Where facilities for testing do not exist in the successful bidder / sub-vendor's laboratories or in case of any dispute, samples and test pieces shall be taken by the successful bidder/sub-contractor in presence of BHEL /CUSTOMER and sealed sample shall be sent to any Govt. approved /NABL accredited laboratory for necessary tests at their own cost.	

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COPYRIGHT AND CONFIDENTIAL The information on this document is the property of BHARAT HEAVY ELECTRICALS LIMITED . It must not be used directly or indirectly in any way detrimental to the interest of the company. 5.4 The BHEL/CUSTOMER shall have the right to be present and witness all tests being carried out by the successful bidder / sub- contractor at their own laboratory or approved laboratories. 6 Internal Inspection by Vendor 6.1 Inspection and tests shall be carried out by vendor / manufacturer in accordance with approved drawings, technical specifications, purchase order, relevant standards (BIS/ASME/IEC/DIN/API etc.) and approved QAP. They shall maintain records of each inspection and test carried out and signed documents shall be submitted to BHEL/CUSTOMER for verification. 6.2 The successful bidder shall carry out their internal inspection & obtain clearance from statutory bodies e.g. IBR, CCE, TAC, Weights & Measures, safety (NEPA/ UL/FM etc.), IE rules, CMRI etc. prior to offering any equipment for BHEL /CUSTOMER's inspection in accordance with approved QAP. 6.3 The vendor /Manufacturers shall identify all the inspected equipment/component/raw materials & shall maintain the record of status of inspection viz. inspected & found acceptable, require rectification/rework, rejected etc. 6.4 Repaired and reworked product shall be offered for re- inspection to BHEL /CUSTOMER along-with records of corrective action taken. 7 Method of Inspection by BHEL /CUSTOMER 7.1 Inspection call shall be given only on readiness of the equipment/ assembly/ sub-assembly & after approval of all relevant drawings, datasheet and QAP. In case, equipment/ assembly/ sub-assembly offered for inspection are found not ready, all the cost of visit of engineer shall have to be borne by the vendor. 7.2 Inspection call shall be raised by the vendor in the portal(https://cqir.bhel.in/). After completion of inspection, all the necessary documents shall be uploaded for BHEL approval. 8 Final documentation 8.1 Vendor shall prepare and submit requisite sets of final inspection documents in hard copy and soft form, neatly indexed and filed as listed below. 8.1.1 Inspection Reports / Test Data 8.1.2 Inspection & Test Plans / NDT Procedures / Job related procedures as applicable 8.1.3 Qualification Reports 8.1.4 Validation Reports 8.1.5 Material Review Reports 8.1.6 Calibration Data /Certificates 8.1.7 Non-Conformity Notices if any 8.1.8 Concession /deviation Requests & accepted reports if applicable <tr><td colspan="2">Ref. Doc</td><td colspan="5"> For: - STRUCTURE INDIA  </td></tr>							Ref. Doc		For: - STRUCTURE INDIA 				
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Ref. Doc	9 General clause 9.1 BHEL /CUSTOMER reserve the right to inspect any product at any stage of manufacturing beyond pre-identified stages & hold points of approved QAP. 9.2 However, in case of conflict or repetition, the more stringent requirements among them are to be complied with. 9.3 If any test, not mentioned in the MQP, but required as per approved drawing, data sheet, standard or as per good engineering practice, shall be part of MQP and carried out by the vendor. <u>Abbreviations: -</u> <table border="0"> <tr><td>RMTC</td><td>-</td><td>Material Test certificate</td></tr> <tr><td>IR</td><td>-</td><td>Inspection Report</td></tr> <tr><td>NDE</td><td>-</td><td>Non Destructive Examination</td></tr> <tr><td>LPT</td><td>-</td><td>Liquid Penetrant Test</td></tr> <tr><td>DFT</td><td>-</td><td>Dry Film Thickness</td></tr> <tr><td>BIS</td><td>-</td><td>Bureau of Indian Standards</td></tr> <tr><td>API</td><td>-</td><td>American Petroleum Institute</td></tr> <tr><td>ASME</td><td>-</td><td>American Society of Mechanical Engineers</td></tr> <tr><td>NEPA</td><td>-</td><td>National Environmental Policy Act</td></tr> <tr><td>TC</td><td>-</td><td>Test Certificate</td></tr> <tr><td>ITR</td><td>-</td><td>Internal Test Report</td></tr> <tr><td>IGC</td><td>-</td><td>Inter Granular Corrosion</td></tr> <tr><td>IBR</td><td>-</td><td>Indian Boiler Regulations</td></tr> <tr><td>MQP</td><td>-</td><td>Manufacturing Quality Plan</td></tr> </table>			RMTC	-	Material Test certificate	IR	-	Inspection Report	NDE	-	Non Destructive Examination	LPT	-	Liquid Penetrant Test	DFT	-	Dry Film Thickness	BIS	-	Bureau of Indian Standards	API	-	American Petroleum Institute	ASME	-	American Society of Mechanical Engineers	NEPA	-	National Environmental Policy Act	TC	-	Test Certificate	ITR	-	Internal Test Report	IGC	-	Inter Granular Corrosion	IBR	-	Indian Boiler Regulations	MQP	-	Manufacturing Quality Plan
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	Rev. No.	Date	Revision Details	Revised	Approved	
	00	26-03-2026	Original issue	Kranthi	KPP	
	Ref.					
	Doc.					

For: - STRUCTURE INDIA



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COPYRIGHT AND CONFIDENTIAL The information on this document is the property of BHARAT HEAVY ELECTRICALS LIMITED, It must not be used directly or indirectly in any way detrimental to the interest of the company. QAP GUIDELINES & FORMAT (ANNEXURE) The QAP format and guidelines for filling up the format shall be used by vendor for preparation and submission of QAP after order placement. Note : 1. Typical /Indicative /Standard QAP(s) for equipment /package attached is reference document and to use by successful bidder in future for preparation and submission of QAP for BHEL /CUSTOMER approval. 2. No deviation to reference document is acceptable. For: - STRUCTURE INDIA 				

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COPYRIGHT AND CONFIDENTIAL The information on this document is the property of BHARAT HEAVY ELECTRICALS LIMITED . It must not be used directly or indirectly in any way detrimental to the interest of the company.	<u>GUIDELINES TO VENDORS FOR PREPARATION OF QUALITY ASSURANCE PLAN</u> - QAP shall be made in landscape mode on A4 size paper as per the format enclosed. Font size shall be minimum 10. - Each page of QAP shall contain the following information. - Vendor's name & address. - Customer: BHEL, Hyderabad. - Project. - BHEL Product Standard Number/revision number as referred in P.O. - BHEL Purchase Order Number & Date. - Product as per P.O. description. - QAP Number (unique and shall not repeat)/revision number/date. - Page number and number of pages - QAP shall contain four parts / stages as follows. - Raw materials and bought out items. - In process Control / Inspection. - Final assembly, Inspection & Testing. - Painting, preservation & packing. - Under 'Component', indicate name of the component (say casing, rotor, pressure gauge, etc). - Under 'Characteristics', indicate appropriately (say chemical analysis, mechanical properties, NDT (UT,DP etc.), hydrostatic test, calibration check etc.) - Under 'Class', indicate minor, major or critical depending on the importance of characteristic. - Under 'Type of check', indicate appropriately (say chemical, mechanical, UT, DP etc.) - Under 'Quantum of check', indicate appropriately (say 100%, 10%, sample, per melt, per heat, all pieces etc.) - Under 'Reference document' and 'Acceptance norms', appropriate National & International standards, BHEL standards, approved drawing references etc. should be indicated. It is not correct to mention as "Vendor's internal standards or Vendor's standard practice etc.". If vendors' internal standards are referred, same shall be in line with BHEL Spec. indicated in the P.O. These may require review & approval by our Engineering dept. - Under 'Format of record', indicate appropriately supplier's test certificate, calibration certificate, lab report, inspection report etc.		
	11. Please refer 'Agency' in QAP format. Under P: Perform, W: Witness, V: Verify Indicate against each characteristic 1: (BHEL CQS/Nominated inspection agency), OR 2: (Vendor / Sub vendor)	For: - STRUCTURE INDIA 	

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COPYRIGHT AND CONFIDENTIAL The information on this document is the property of BHARAT HEAVY ELECTRICALS LIMITED . It must not be used directly or indirectly in any way detrimental to the interest of the company.	Note: Performing agency is normally vendor or his sub vendor (Legend 2). Where witness points are indicated in specification, P.O., Drawing etc., for such operations, under Witness (W) column use 1. Under 'Verify' column, use code 1. 12. Under 'D' please put (☐ Tick) against each characteristic where vendor proposes to submit test certificate/report etc. OR as required as per BHEL Specification. 13. Vendor's signature & stamp should be available on each page of QAP. 14. Vendor should read the BHEL Product Standard thoroughly and QAP should be made only inline and relevant to the Specification & Approved Drawings. 15. The following operations/characteristics/check points may be included (AS APPROPRIATE) a) Visual check b) Dimensional check c) Mechanical and Chemical properties. d) Surface preparation before painting (by chemical cleaning, sand blasting, shot blasting etc. as the case may be.) e) Painting check for shade, Dry Film Thickness (DFT), Adhesion/ peel off test etc. f) Check for correctness for all components mounted as per General arrangement Drawing, Bill Of Materials (BOM), etc. for range, rating, make, color, size, location as per GA, quantity, label description including tag nos., annunciator facia, loose components, accessories, spares etc. g) Verification of test certificate for protection class for the enclosures. h) Mechanical functioning of switches. i) Continuity of earthing and provision of earth points. j) Colour coding of wiring, size, tightness & dressing of wiring. k) Review of test certificates of assembled items, raw materials, internal test reports etc. l) Witness of functional checks, which may include mechanical run & electrical run, H.V.test, IR measurement, Electrical and Mechanical tests etc. m) PQR, WPS, Welder Qualification Record, welding records (fit up, DP) etc. n) Material identification (for punch marks of serial numbers, Heat No, Melt No, Inspector's stamp etc.) o) Hydraulic Pressure Test, Pneumatic Pressure Test, Liquid Penetration Examination and other Non Destructive Tests. p) Tests on Galvanised items (Visual, Hammer Test, Knife Test, Thickness, Pierce Test (Copper sulphate test), Hydrogen evaluation test, Stripping test (for Mass of Zinc coating) q) All tests as per BHEL Product Standard & approved drawings including Type tests and Routine tests on individual items and on System as a whole. r) Packing and Preservation. 16. QAP Format enclosed. 17. Typical Manufacturing QAP is attached. 		
	Ref. Doc		

**PROJECT ENGINEERING & SYSTEMS DIVISION****RC PURAM, HYDERABAD.****QUALITY & BUSINESS EXCELLENCE****INSPECTION / TC REVIEW FORMAT**

1	Vendor's Name:		5	Applicable BHEL Spec No:	
2	Project:		6	Approved Drawing No:	
3	PO No:		7	Approved Data Sheet No:	
4	Item Description:		8	Approved QAP No:	

OFFER LIST

S.No	BBU/ PO Sr. No.	Item Description	Total Qty as per PO/BBU	Qty. already accepted	Qty offered for TC review	Cumulative Qty	Balance Qty
A							
B							
C							
D							

TC REVIEW REQUISITION

BBU / PO Sr. No.	QAP Clause No.	Format of Record	Certificate No. & Date	Page No.	REMARKS
A. Item Description:					
B. Item Description:					
C. Item Description:					
D. Item Description:					
E. Item Description:					

For: **STRUCTURE INDIA****SUPPLIER / VENDOR SIGNATURE WITH SEAL****BHEL/ BHEL's TPIA SIGNATURE WITH SEAL****Dt:****Dt:**

PACKAGE EXECUTION SCHEDULE

Sl. No.	Event	Schedule
		Vendor Drawings
1	Drawings/Datasheets submission	Within 5 days from P.O. date
2	BHEL Comments	Within 1 week from receipt of the "Drawings/Datasheets in line with Specification"
3	Revised Drawings/Datasheets submission	Within 3 days from BHEL's comments date
4	BHEL Comments on revised Drawings/Datasheets	Within 5 days from receipt of the revised Drawings/Datasheets
5	BHEL Approval for Manufacture Clearance	Within 1 week from receipt of the final revised Drawings/Datasheets

However, it's vendor responsibility to ensure the cycle time reduction for the submission of drawing.

For: - STRUCTURE INDIA

A circular red stamp with the text "STRUCTURE INDIA" at the top, "PARTNER" in the center, and "Ghaziabad" at the bottom. A handwritten signature in black ink is written over the stamp.

ANNEXURE-2: PRICE BID FORMAT

1 x 150MW BTG HINDALCO-LAPANGA, Unit#7
2 x 150MW BTG HINDALCO-LAPANGA, Unit#8 & 9

EARTHING & LIGHTNING PROTECTION MATERIALS

Sl. No.	Material Code	Description	Qty.	Unit of Meas.	Unit Price	Total Price	HSN/SAC	Remarks
1	PY9755001018	75 x 10 GI Strip	10,800	M				
2	PY9755001026	50 x 6 GI Strip	12,000	M				
3	PY9755001034	35x6 GI STRIP	4,100	M				
4	PY9755001093	25 x 3 GI Strip	6,000	M				
5	PY9755001069	8 SWG GI WIRE (SOLID)	20,000	M				
6	PY9755002049	65MM DIA,3M LONG GI PIPE ELECTROD HEAVYDUTY CLASS-C	50	Nos.				
7	PY9755002065	COPPER PIPE ELECTRODE AS FIG.6 OF PY55002.CLASS-C	32	Nos.				
8	PY9755003010	VER TER AIR TERM ROD(G.I) FOR LIGHTNING PROTECTION	20	Nos.				
Total Package Price								

NOTES:

- Bidders should mention the applicable HSN/SAC code along with GST% against respective line items.
- Bidders shall not fill/ edit/ modify anything else in the Price Bid Format.
- The Total Bid Value quoted by the Bidder shall represent the total landed cost for this enquiry and shall include GST,Packing & Forwarding Charges, Freight Charges etc.,.Transit Insurance & TPI inspection charges are in BHEL scope.**
- The bidders will provide un-priced price format strictly in the BHEL price format given above, in the techno commercial part of their offers. Bid will be rejected if any other price format is used. Both priced and un-priced price formats to be provided by the bidders shall be signed and stamped copies.
- Bidder to indicate the "Quoted" in the columns "Unit rate & Total rate" as a confirmation of their bid to the respective item and upload un-priced bid in part-1 of the offer (i.e. Techno-Commercial bid).

For: - STRUCTURE INDIA



(Name & Signature of the Bidder)
(Company Stamp)